

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ DISADVANTAGED ☐ SERVICE-DISABLED ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A)		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	
15. DELIVER TO CODE		16. ADMINISTERED BY CODE			
		17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			
17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐		18a. PAYMENT WILL BE MADE BY CODE			
		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
TELEPHONE NUMBER					
19. ITEM NUMBER 20. SCHEDULE OF SUPPLIES/SERVICES 21. QUANTITY 22. UNIT 23. UNIT PRICE 24. AMOUNT					
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED ☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Emergency medical services-ground ambulance services and support staff for on-post Fort Leavenworth, Kansas Garrison Emergency Medical Services. FY26 1 June 2026 to 31 May 2027. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 1001	Emergency medical services-ground ambulance services and support staff for on-post Fort Leavenworth, Kansas Garrison Emergency Medical Services. FY27 1 June 2027 to 31 May 2028. Subject to the availability of FY27 funds. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 2001	Emergency medical services-ground ambulance services and support staff for on-post Fort Leavenworth, Kansas Garrison Emergency Medical Services. FY28 1 June 2028 to 31 May 2029. Subject to the availability of FY28 funds. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 3001	Emergency medical services-ground ambulance services and support staff for on-post Fort Leavenworth, Kansas Garrison Emergency Medical Services. FY29 1 June 2029 to 31 May 2030. Subject to the availability of FY29 funds. Pricing Arrangement: Firm Fixed Price	12	Months		

Option Line Item 4001	Emergency medical services-ground ambulance services and support staff for on-post Fort Leavenworth, Kansas Garrison Emergency Medical Services. FY30 1 June 2030 to 31 May 2031. Pricing Arrangement: Firm Fixed Price	12	Months		
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Continuation of Description

Requirements

Emergency Medical Services Fort Leavenworth Pop Dates: 01 Jun 2026-31 May 2031

0001

Product Service Code : Q529

North American Industry Classification System (NAICS) : 621910

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: Fort Leavenworth EMS DoDAAC: HT0840 CountryCode: USA AHC MUNSON LEAVENWORTH - MM BLDG 343 550 POPE AVE, FORT LEAVENWORTH KS 66027-2332 FORT LEAVENWORTH, KS 66027-2332 UNITED STATES
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: Fort Leavenworth EMS DoDAAC: HT0840 CountryCode: USA AHC MUNSON LEAVENWORTH - MM BLDG 343 550 POPE AVE, FORT LEAVENWORTH KS 66027-2332 FORT LEAVENWORTH, KS 66027-2332 UNITED STATES
Option Line Item 2001	Inspection and Acceptance Location Both Destination Instructions: Fort Leavenworth EMS DoDAAC: HT0840 CountryCode: USA

	AHC MUNSON LEAVENWORTH - MM BLDG 343 550 POPE AVE, FORT LEAVENWORTH KS 66027-2332 FORT LEAVENWORTH, KS 66027-2332 UNITED STATES
Option Line Item 3001	Inspection and Acceptance Location Both Destination Instructions: Fort Leavenworth EMS DoDAAC: HT0840 CountryCode: USA AHC MUNSON LEAVENWORTH - MM BLDG 343 550 POPE AVE, FORT LEAVENWORTH KS 66027-2332 FORT LEAVENWORTH, KS 66027-2332 UNITED STATES
Option Line Item 4001	Inspection and Acceptance Location Both Destination Instructions: Fort Leavenworth EMS DoDAAC: HT0840 CountryCode: USA AHC MUNSON LEAVENWORTH - MM BLDG 343 550 POPE AVE, FORT LEAVENWORTH KS 66027-2332 FORT LEAVENWORTH, KS 66027-2332 UNITED STATES

Continuation of Deliveries or Performance

0001	Delivery Schedule Delivery Period From 01 Jun 2026 to 31 May 2027 Quantity 12 Months Address and POC Service Performance Site DoDAAC: HT0840 CountryCode: USA AHC MUNSON LEAVENWORTH - MM BLDG 343 550 POPE AVE, FORT LEAVENWORTH KS 66027-2332 FORT LEAVENWORTH, KS 66027-2332 UNITED STATES Period of Performance From 01 Jun 2026 To 31 May 2027
Option Line Item 1001	Delivery Schedule Delivery Period From 01 Jun 2026 to 31 May 2027 Quantity 12 Months Address and POC Service Performance Site DoDAAC: HT0840 CountryCode: USA AHC MUNSON LEAVENWORTH - MM BLDG 343 550 POPE AVE, FORT LEAVENWORTH KS 66027-2332 FORT LEAVENWORTH, KS 66027-2332 UNITED STATES Period of Performance

	From 01 Jun 2027 To 31 May 2028
Option Line Item 2001	Delivery Schedule Delivery Period From 01 Jun 2026 to 31 May 2027 Quantity 12 Months Address and POC Service Performance Site DoDAAC: HT0840 CountryCode: USA AHC MUNSON LEAVENWORTH - MM BLDG 343 550 POPE AVE, FORT LEAVENWORTH KS 66027-2332 FORT LEAVENWORTH, KS 66027-2332 UNITED STATES Period of Performance From 01 Jun 2028 To 31 May 2029
Option Line Item 3001	Delivery Schedule Delivery Period From 01 Jun 2026 to 31 May 2027 Quantity 12 Months Address and POC Service Performance Site DoDAAC: HT0840 CountryCode: USA AHC MUNSON LEAVENWORTH - MM BLDG 343 550 POPE AVE, FORT LEAVENWORTH KS 66027-2332 FORT LEAVENWORTH, KS 66027-2332 UNITED STATES

	Period of Performance From 01 Jun 2029 To 31 May 2030
Option Line Item 4001	Delivery Schedule Delivery Period From 01 Jun 2026 to 31 May 2027 Quantity 12 Months Address and POC Service Performance Site DoDAAC: HT0840 CountryCode: USA AHC MUNSON LEAVENWORTH - MM BLDG 343 550 POPE AVE, FORT LEAVENWORTH KS 66027-2332 FORT LEAVENWORTH, KS 66027-2332 UNITED STATES Period of Performance From 01 Jun 2030 To 31 May 2031

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-3	Gratuities.	1984-04		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	2020-06	Alternate I	2021-11
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)	2026-02		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation 2026-O0038)	2026-02		

52.212-4	Terms and Conditions- Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026- O0038)	2026-02
52.219-8	Utilization of Small Business Concerns. (Deviation 2026- O0038)	2026-02
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026- O0038)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation 2026- O0038)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026- O0038)	2026-02
52.222-41	Service Contract Labor Standards. (Deviation 2026- O0038)	2026-02
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts). (Deviation 2026- O0038)	2026-02

52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	2026-02
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation 2026-O0038)	2026-02
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	2026-02
52.224-3	Privacy Training.	2017-01
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7004	Antiterrorism Awareness Training for Contractors.	2023-01		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	2024-05	Deviation 2024-O0013	2024-05
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01		
252.225-7001	Buy American and Balance of Payments Program.	2024-02		
252.225-7012	Preference for Certain Domestic Commodities.	2022-04		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang	2023-06		

Uyghur Autonomous Region.

252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	2023-01
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.243-7002	Requests for Equitable Adjustment.	2022-12
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.219-14	Limitations on Subcontracting (DEVIATION 2021-O0008)	2026-02	Deviation 2021-O0008	2023-02

LIMITATIONS ON SUBCONTRACTING (FEB 2023) (DEVIATION 2021-O0008)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor,

including an independent contractor, that--

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to--

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are--

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are--

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for--

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. The following services may be excluded from the 50 percent limitation:

(i) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code 562910), cloud computing services, or mass media purchases.

(ii) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount

paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--

[Contracting Officer check as appropriate.]

[] By the end of the base term of the contract and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

(Deviation 2026-O0038)

Postaward Small Business Program Rerepresentation (Feb 2026) (Deviation 2026-O0038)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support-table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it is, is not a small business concern under 621910 NAICS Code assigned to W81K0026QA149 contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.]* The Contractor represents that it is, is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it is, is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [*Complete only if the offeror is a HUBZone small business concern.*] The offeror represents, as part of its offer, that It is, is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____] Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-42 Statement of Equivalent Rates 2014-05
for Federal Hires.

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Wage Determination No.: 2015-5105 Revision No.: 27 Date Of Last Revision: 12/03/2025 is hereby incorporated.

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Employee Class	Class Code	Monetary Wage to Fringe Benefits /GS	Equivalent WG
Emergency Medical Technician	12040	\$25.95	GS7/Step 3
Dispatcher	01060	\$25.95	GS7/Step 3
Paramedic	12040	\$31.74	GS9/Step 3
Senior Level Paramedic	12040	\$34.96 3	GS10/Step 3

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Invoice 2 in 1

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>HQ0490</u>
Issue By DoDAAC	<u>W81K00</u>
Admin DoDAAC	<u>W81K00</u>

Inspect By DoDAAC	<u>HT0840</u>
Ship To Code	<u>HT0840</u>
Ship From Code	<u>TBD</u>
Mark For Code	<u> </u>
Service Approver (DoDAAC)	<u>HT0840</u>
Service Acceptor (DoDAAC)	<u>HT0840</u>
Accept at Other DoDAAC	<u> </u>
LPO DoDAAC	<u> </u>
DCAA Auditor DoDAAC	<u> </u>
Other DoDAAC(s)	<u> </u>

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TBD

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

(w) The non-FAR Part 12 discretionary FAR and DFARS clauses included herein are incorporated into this contract either by reference or in full text. If incorporated by reference, see clause 52.252-2 herein for locations where full text can be found.

(End of Addendum)

*** END OF NARRATIVE ***

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	2020-06		
52.204-19	Incorporation by Reference of Representations and Certifications.	2014-12		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	2026-04		
52.223-5	Pollution Prevention and Right-to-Know Information.	2024-05		
52.223-23	Sustainable Products and Services. (DEVIATION 2025-O0004)	2026-02	Deviation 2025-O0004	2025-03
52.228-5	Insurance-Work on a Government Installation.	1997-01		
52.232-18	Availability of Funds.	1984-04		
52.232-39	Unenforceability of Unauthorized	2013-06		

Obligations.

52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02
52.240-93	Basic Safeguarding of Covered Contractor Information Systems. (Deviation 2026-O0038)	2026-02
52.242-13	Bankruptcy.	1995-07
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-04

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.204-7000	Disclosure of Information.	2016-10		
252.204-7003	Control of Government Personnel Work Product.	1992-04		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	2019-05		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	2014-09		

252.225-7002	Qualifying Country Sources as Subcontractors.	2022-03		
252.225-7048	Export-Controlled Items.	2013-06		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01		
252.240-7997	NIST SP 800-171 DoD Assessment Requirements. (DEVIATION 2026-O0025)	2026-02	Deviation 2026-O0025	2026-02
252.243-7001	Pricing of Contract Modifications.	1991-12		
252.244-7999	Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-O0015)	2026-02	Deviation 2026-O0015	2026-01

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.217-8	Option to Extend Services.	1999-11		

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of clause)

52.217-9 Option to Extend the Term of the 2000-03
Contract.

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

52.237-7 Indemnification and Medical 2026-02
Liability Insurance. (Deviation
2026-O0038)

Indemnification and Medical Liability Insurance (Feb 2026) (Deviation 2026-O0038)

(a) It is expressly agreed and understood that this is a nonpersonal services contract, under which the professional services rendered by the Contractor are rendered in its capacity as an independent contractor. The Government may evaluate the quality of professional and administrative services provided, but retains no control over professional aspects of the services rendered, including by example, the Contractor's professional medical judgment, diagnosis, or specific medical treatments. The Contractor shall be solely liable for and expressly agrees to indemnify the Government with respect to any liability producing acts or omissions by it or by its employees or agents. The Contractor shall maintain during the term of this contract liability insurance issued by a responsible insurance carrier of not less than the following amount (s) per specialty per occurrence: one million (\$1,000,000.00) and three million (\$3,000,000.00) in the aggregate.

(b) An apparently successful offeror, upon request by the Contracting Officer, shall furnish prior to contract award evidence of its insurability concerning the medical liability insurance required by paragraph (a) of this clause.

(c) Liability insurance may be on either an occurrences basis or on a claims-made basis. If the policy is on a claims-made basis, an extended reporting endorsement (tail) for a period of not less than 3 years after the end of the contract term must also be provided.

(d) Evidence of insurance documenting the required coverage for each health care provider who will perform under this contract shall be provided to the Contracting Officer prior to the commencement of services under this contract. If the insurance is on a claims-made basis and evidence of an extended reporting endorsement is not provided prior to the commencement of services, evidence of such endorsement shall be provided to the Contracting Officer prior to the expiration of this contract. Final payment under this contract shall be withheld until evidence of the extended reporting endorsement is provided to the Contracting Officer.

(e) The policies evidencing required insurance shall also contain an endorsement to the effect that any cancellation or material change adversely affecting the Government's interest shall not be effective until 30 days after the insurer or the Contractor gives written notice to the Contracting Officer. If during the performance period of the contract the Contractor changes insurance providers, the Contractor must provide evidence that the Government will be indemnified to the limits specified in paragraph (a) of this clause, for the entire period of the contract, either under the new policy, or a combination of old and new policies.

(f) The Contractor shall insert the substance of this clause, including this paragraph (f), in all subcontracts under this contract for health care services and shall require such subcontractors to provide evidence of and maintain insurance in accordance with paragraph (a) of this clause. At least 5 days before the commencement of work by any subcontractor, the Contractor shall furnish to the Contracting Officer evidence of such insurance.

(End of clause)

52.252-2	Clauses Incorporated by Reference.	1998-02
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Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<http://www.acquisition.gov/far/>

(End of clause)

52.252-6	Authorized Deviations in Clauses.	2020-11
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Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.237-7023	Continuation of Essential Contractor Services.	2010-10		

CONTINUATION OF ESSENTIAL CONTRACTOR SERVICES (OCT 2010)

(a) *Definitions.* As used in this clause-

(1) "Essential contractor service" means a service provided by a firm or individual under contract to DoD to support mission-essential functions, such as support of vital systems, including ships owned, leased, or operated in support of military missions or roles at sea; associated support activities, including installation, garrison, and base support services; and similar services provided to foreign military sales customers under the Security Assistance Program. Services are essential if the effectiveness of defense systems or operations has the potential to be seriously impaired by the interruption of these services, as determined by the appropriate functional commander or civilian equivalent.

(2) "Mission-essential functions" means those organizational activities that must be performed under all circumstances to achieve DoD component missions or responsibilities, as determined by the appropriate functional commander or civilian equivalent. Failure to perform or sustain these functions would significantly affect DoD's ability to provide vital services or exercise authority, direction, and control.

(b) The Government has identified all or a portion of the contractor services performed under this contract as essential contractor services in support of mission essential functions. These services are listed in attachment 3, Mission-Essential Contractor Services, dated 18 November 2009.

(c)(1) The Mission-Essential Contractor Services Plan submitted by the Contractor, is incorporated in this contract.

(2) The Contractor shall maintain and update its plan as necessary. The Contractor shall provide all plan updates to the Contracting Officer for approval.

(3) As directed by the Contracting Officer, the Contractor shall participate in training events, exercises, and drills associated with Government efforts to test the effectiveness of continuity of operations procedures and practices.

(d)(1) Notwithstanding any other clause of this contract, the contractor shall be responsible to perform those services identified as essential contractor services during crisis situations (as directed by the Contracting Officer), in accordance with its Mission-Essential Contractor Services Plan.

(2) In the event the Contractor anticipates not being able to perform any of the essential contractor services identified in accordance with paragraph (b) of this section during a crisis situation, the Contractor shall notify the Contracting Officer or other designated representative as expeditiously as possible and use its best efforts to cooperate with the Government in the Government's efforts to maintain the continuity of operations.

(e) The Government reserves the right in such crisis situations to use Federal employees, military personnel or contract support from other contractors, or to enter into new contracts for essential contractor services.

(f) Changes. The Contractor shall segregate and separately identify all costs incurred in continuing performance of essential services in a crisis situation. The Contractor shall notify the Contracting Officer of an increase or decrease in costs within ninety days after continued performance has been directed by the Contracting Officer, or within any additional period that the Contracting Officer approves in writing, but not later than the date of final payment under the contract. The Contractor's notice shall include the Contractor's proposal for an equitable adjustment and any data supporting the increase or decrease in the form prescribed by the Contracting Officer. The parties shall negotiate an equitable price adjustment to the contract price, delivery schedule, or both as soon as is practicable after receipt of the Contractor's proposal.

(g) The Contractor shall include the substance of this clause, including this paragraph (g), in subcontracts for the essential services.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

PERFORMANCE WORK STATEMENT (PWS)

Ground Ambulance Services Munson Army Health Center U.S. Army Medical Department Activity (MEDDAC) Garrison Fort Leavenworth and Army Corrections Command Fort Leavenworth, Kansas

Part 1

General Information

1. General: This is a non-personal services contract, as defined in Federal Acquisition Regulation (FAR) 37.101, it is expressly agreed and understood that the services rendered by a contract service provider are rendered in their capacity as an independent Contractor or employee of any independent company that may be a party to this contract. The Government may evaluate the quality of services provided but retains no control over the professional aspects of the services rendered. The Contractor shall be solely liable for and expressly agree to indemnify the Government with respect to any liability producing acts or omissions by its personnel or agents. This contract does not create an employer-employee relationship between the Government and any corporation, partnership, business association or other party or legal entity with which the individual contract service provider may be associated. Contract personnel rendering services are not subject, either by the contract terms or by the manner of its administration, to the supervision and control usually prevailing in relationship between the Government and its employees.

1.1 Description of Services/Introduction: The Contractor shall include all functions, tasks and responsibilities normally performed by a ground ambulance emergency response and transport organization for (1) ground ambulance 24 hours a day, 7 days a week, 365 or 366 days a year providing experienced professional services of a Physician Medical Director, Emergency Medical Technicians (EMT), a medical emergency dispatcher, Paramedics, and a Senior Level Paramedic that shall serve as an On-Site Program Manager in support of Fort Leavenworth, Kansas.

1.2 Background: The Ground Ambulance Services shall include but are not limited to: one advanced life support emergency medical service, transports to and from aero-medical evacuation sites, and field ambulance services as defined in Army Regulation (AR) 40-3, Chapter 13 - Emergency Medical Services. The AR can be found at <http://www.apd.army.mil>. The Contractor shall provide personnel who are competent, qualified, and adequately trained to perform the assigned duties.

1.3 Scope: The Contractor shall provide non-personal service(s). This contract includes all functions, tasks and responsibilities normally performed by a ground ambulance emergency response and transport organization. The Contractor shall operationally staff ONE (1) ground

ambulances 24 hours a day, 7 days a week, 365 or 366 days a year. In addition to responding to emergencies, Contractor Health Care Provider (HCP) shall be tasked to train and respond to emergency incidents in support of Fort Leavenworth and Army Corrections Command. The Contractor shall comply with all applicable laws and regulations, including but not limited to Federal Law and Kansas State Law(s), Occupational Safety and Health Administration (OSHA) regulations, US Army, and installation regulations. The Contractor HCP shall participate in planning and execution of Installation Readiness and Disaster exercises without degradation to emergency response capability. The Contractor HCP shall be required to participate in no more than two (2) installation exercise events per calendar year.

1.4 Objectives:

Provide Ground Ambulance Staffing and transport Emergency Medical services to Munson Army Health Center and Garrison Ft. Leavenworth to include Army Corrections Command. The Contractor Emergency Medical Services (EMS) Medical Director is responsible for providing medical oversight to the EMT, Paramedic and Senior Level Paramedic regarding aspects of patient care including scope of practice, use of Army EMS protocols, standing orders, quality assurance, and improvement. The Contractor shall provide all personnel and equipment with daily supervision and other items as defined in this Performance Work Statement. The Contractor shall perform and adhere to the standards in this contract and accordance with all applicable law and policies. See the standards in Technical Exhibit B for healthcare worker standards.

1.5 General Information:

1.5.1 Quality Control Plan (QCP): The Contractor shall develop and maintain a QCP to ensure services are performed in accordance with (IAW) this PWS. The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The Contractor's QCP is the means by which it assures that the work provided complies with the requirements of the contract.

The Contractor's Proposed comprehensive QCP shall be submitted electronically within thirty (30) calendar days after date of contract award to the Contracting Officer (KO) through the Contracting Officer Representative (COR) and within five (5) working days when changes are made. The Government will review and either notify the Contractor in writing of acceptance of the plan or return their comments to the Contractor within (5) calendar days. If the Government has provided comments, the Contractor shall then have (5) calendar days to submit a Final QCP. After receipt of the Final QCP, the Contractor may receive the Contracting Officer's acceptance in writing. Any proposed changes to the accepted QCP are required to be resubmitted for acceptance by the Contracting Officer no later than (5) calendar days prior to the anticipated change and before implementation by the Contractor. The timeline noted above will apply for review and acceptance for proposed changes. At a minimum, the QCP shall include and answer the following to be acceptable:

(a) A chart showing the organizational chart and lines of authority, the names, qualifications, duties, responsibilities, and classification of each member of the Contractor's Quality Control Team;

(b) How the Contractor shall monitor work to ensure performance complies with all deliverables (etc. timelines, deadlines, and goals);

(c) How the Contractor shall monitor work to ensure performance complies with all specifications and requirements of the contract, including the contract's clauses.

(d) How the Contractor shall monitor and ensure staff qualifications remain current and valid including Department of Defense (DoD) Contractor Personnel Office (DOCPER) processes /approvals throughout contract performance.

(e) How the Contractor shall ensure all keys issued will remain controlled items and ensure pharmaceuticals are maintained by Drug Enforcement Administration standards (Paragraph 1.7 Controlled Items);

1.5.2 Quality Assurance: The Government will evaluate the Contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government will do to ensure that the Contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the acceptable quality levels (performance thresholds).

1.5.3 Recognized Holidays: The following provides information on recognized holidays for the purpose of the PWS. If submittal of any documentation (e.g. deliverables, submittals, etc.) deadlines fall on a holiday, the closest workday prior to the holiday will apply as the deadline for submittal.

New Year's Day, January 1st

Martin Luther King, Jr.'s Birthday, 3rd Monday in January

President's Day, 3rd Monday in February

Memorial Day, Last Monday in May

Juneteenth, June 19th

Independence Day, July 4th

Labor Day, 1st Monday in September

Columbus Day, 2nd Monday in October

Veteran's Day, November 11th

Thanksgiving Day, 4th Thursday in November

Christmas Day, December 25th

1.5.3.1 U.S. Holidays: Work shall be performed on U.S. federally recognized holidays occurring during the normal work week unless otherwise directed by the Contracting Officer.)

1.5.4 Operating Hours: The contractor shall provide services 24 hours a day, 7 days a week, 365 days a year, including Federal holidays, regardless of national emergencies. The Contractor shall at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS. When hiring or terminating personnel, the contractor shall keep in mind that the stability and continuity of the workforce are essential.

1.5.4.1 Government Facility Office Hours: The Government facility office hours are 0730 to 1630, and days Monday through Friday except U.S. Holidays identified in paragraph 1.5.3.1 above or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. .

1.5.4.2 Government Facility Operating Hours: The Government facility operating hours is 24/7 operations. The Government facility may be opened during local or national emergencies, administrative closings, or similar Government directed facility closings. The Government facility is open for operations during the recognized U.S. Holidays identified in paragraph 1.5.3.1 above. The Government facility may close due to local or national emergencies, administrative closings, or similar Government directed facility closings and will be communicated by the Contracting Officer to the Contractor.

1.5.4.3 Contractor Support Hours: The Contractor shall provide support to accommodate the 24 /7operations (including Federal Holidays and Government Designated training holidays).

1.5.4.3.1 Contractor Work Plan: The duty schedules will be such as to staff the one-ambulance unit at Fort Leavenworth Kansas Fire Station #2, 24 hours per day, 7 days per week, and 365/366 days per year to support Fort Leavenworth and Army Corrections Command.

1.5.5 Place of Performance: The work to be performed under this contract will be performed at Munson Army Health Clinic and garrison Fire Department to ensure effective response to Enhanced 911 (E911) calls.

1.5.6 Field Hours: This is aside from the normal duty schedules of providing ground ambulance support and is additional coverage in support of Army Corrections Command in contingency incidents. The field hours are designated for providing ground ambulance services for (1) ambulance to include all functions, tasks and responsibilities outlined in this PWS however on an hourly basis depending on how long the contingency incident occurs.

1.6 Security Requirements: The following information is provided on security related matters.

1.6.1 Security Program Munson Army Health Center is on restricted access military installations. Health Care Providers (HCPS) shall not begin performance until the complete documentation for a Personnel Background Investigation has been submitted. An Identification (ID) badge, the Common Access Card (CAC) and the vehicle registration will not be issued until complete documentation has been submitted to the appropriate Installation, MTF, or other Security Manager

(s), as required at the facility. The CAC card is required for access to Government computer databases and also is presented to the security guards when entering the military installation. If a background investigation results in an unfavorable finding, the COR or Contracting Officer will notify the Contractor and the Contractor personnel shall not be granted access to the facility, will not be allowed to perform services at the facility, and shall return identification badges, CAC cards, and other items previously issued by the government in accordance with DoDM1000.13-M-V1.

a. Upon award of the contract, the Contractor shall immediately contact the COR for processing procedures to meet the security requirements, for information needed to access the installation /MTF initially, as well as in-processing forms.

1.6.2 Personnel Security Clearance Requirements: IAW Army/Defense Health Agency (DHA) Policies, Installation Security Office will submit all background investigations on prospective contract HCPs requiring Common Access Cards (CAC), network access.

a. Upon notification, the Provost Marshal Office will conduct background checks on all other contract HCP personnel when there isn't a requirement for CAC and/or IT requirements in the contract.

b. Complete disclosure of any past incidents in the contract HCP professional duties or of incidents which might be considered to impact his/her professional standing, such as charges (unless acquitted) involving felonies or misdemeanors (other than minor traffic violations), is a necessary part of the competency process. This disclosure shall also specifically include reports of any actions, claims, charges, of malpractice ever brought against the contract HCP (either individually or as a part of a group), as well as the outcome (or current status) of any such case. The governing policy is DHAPM 6025.13, volume 4 in regard to healthcare provider credentialing and privileging.

c. Contract HCP is advised to make full disclosure under this paragraph as a condition of employment. Failure to make a full disclosure will result in a determination that the provider's services were unsatisfactory.

d. List of Excluded Individuals and Entities (LEIE). For any provider (privileged and non-privileged) within the DoD, the List of Excluded Individuals and Entities (LEIE) on the Health and Human Services website (http://oig.hhs.gov/exclusions/exclusions_list.asp) must be queried to determine if the provider has been excluded from participation in Federal Health Programs. If the provider's name appears on this list, the provider is disqualified from working for the DoD, in any capacity.

e. Criminal History Background Check (CHBC). Contract workers involved in the delivery of health care to patients under the age of 18 must undergo a Child Care National Agency Check and Inquiries (CNACI) as part of a CHBC as stated in Procedures, Enclosure 3 of DoDI 1402.05.

1.6.3 Installation Access: Access to U.S. installations, buildings and controlled areas is limited to personnel who meet security criteria and are authorized. Failure to submit required information /data and obtain required documentation or clearances will be grounds for denying access to U.S. installations, buildings and controlled areas.

The Contractor shall ensure that any subcontractors used in performance of this contract complies with these requirements and that all personnel, of both the Contractor and any subcontractor utilized by the Contractor, are made aware of and comply with these requirements.

a. The Contractor shall be aware of and comply with the requirements associated with Installation Access Control. The Government is not liable for any costs associated with performance delays due solely to a firm's failure to comply with Installation Access Control System (IACS) processing requirements.

b. The Contractor shall return installation passes to the issuing IACS office when the contract is completed or when Contractor personnel no longer require access.

1.6.3.4 Common Access Cards (CAC) and CAC Log: The Contractor shall provide the following information: Last, First and Middle Names, government issued personal identifier (e.g. Social Security Number, Federal Identification Number, or Tax Identification Number), date of birth, primary email address be used to contact the individual) and any other necessary information required to obtain a CAC or installation access card, to the COR after the personnel is cleared to provide services. The Contractor shall ensure safeguarding of Personally Identifiable Information (PII).

1.6.4 Background Checks: In accordance with (JAW) Army Regulation 525-13, paragraph 5-19, all prospective contract HCPs will undergo a verification process to determine trustworthiness and suitability prior to being granted access to federal property. Limited access with escorts may be granted (at the installation's discretion) for an interim period while investigations are being conducted.

1.6.4.1 U.S. Citizen: Contractors that work with or teach youth under the age of 18 years are subject to U.S background checks. The Requiring Activity Manager will determine the extent of background checks required. The Contractor personnel may begin performance of the contract after receiving a favorable local background check. The Contractor agrees to replace the personnel should results of the background check, if required, be unfavorable as determined by the Requiring Activity Manager. The Contractor's replacement of the personnel with the unfavorable background check shall be within a timeframe provided by the Requiring Activity Manager. The Contractor shall also replace personnel whose background check, during their tenure of employment, renders them with an unfavorable local or state-side background check, as determined by the Requiring Activity Manager. The Contractor shall forward a copy to the COR and the Requiring Activity Manager of each favorable background check within 48 hours of receipt by the Contractor, identifying such with the appropriate contract number. The Contractor shall forward a copy to the COR and the Requiring Activity Manager of each unfavorable background check within 48 hours of receipt by the Contractor, identifying such with the appropriate contract number. When the Government awards a non-personal services contract directly to an individual, the failure of the individual to provide a favorable background check would be grounds for termination.

1.6.5 Physical Security: The Contractor shall safeguard all Government information, and property. At the close of each work period, Government facilities shall be secured IAW AR 190-5-Physical Security Program.

1.6.6 Operations Security (OPSEC) Requirements: Contractor personnel shall adhere to facility security policies and restrictions. The Contractor shall immediately report suspicious activities to security personnel. Government issued access badges shall not be worn outside designated facilities where visible to the general public.

1.7 Controlled Items: The Contractor shall establish and implement methods of making sure all keys issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. Contractor shall adhere to all DEA and local standards for pharmaceuticals storage, inventory and management. NOTE: All references to keys include key cards. No keys issued to the Contractor by the Government shall be duplicated. The Contractor shall immediately report any incidents of lost or duplicate keys to the COR. In the event keys, other than master keys, are lost or duplicated, the Contractor shall, upon direction of the Provost Marshal, re-key or replace the affected lock or locks; however, the Government, at its option, may replace the affected lock or locks or perform rekeying. When the replacement of locks or re-keying is performed by the Government, the total cost of re-keying or the replacement of the lock or locks shall be deducted from payment due to the Contractor. In the event a master key is lost or duplicated, all locks and keys for that system shall be replaced by the Government and the total cost deducted from the payment due to the Contractor. The Contractor shall prohibit the use of Government issued keys by any persons other than the Contractor's personnel. The Contractor shall prohibit the opening of locked areas by Contractor personnel to permit entrance of persons other than Contractor personnel engaged in the performance of assigned work in those areas, or personnel authorized entrance by the Department Chief and/or Supervisor. The Contractor shall establish and implement methods of ensuring that all lock combinations are not revealed to unauthorized persons. The Contractor shall ensure that lock combinations are changed when personnel having access to the combinations no longer have a need to know such combinations. These procedures shall be included in the Quality Control Plan.

1.8 Post Award Conference/Periodic Progress Meetings: The Contractor shall attend any post award conference convened by the contracting activity or contract administration office in accordance with FAR Subpart 42.5. The Contracting Officer, COR, and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings the Contracting Officer will apprise the Contractor of how the Government views the Contractor's performance and the Contractor shall apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

1.8.1 The Contractor shall attend, participate in, and furnish input to scheduled and unscheduled meetings, conferences, and briefings that relate to the functions and services herein as required by the Government to provide effective communication and impart necessary information. The Contract Manager or designated representative shall attend meetings as requested by the Government. Meeting attendees shall at times include Contractor managerial, supervisory, and

other personnel knowledgeable of the subject matter. Meetings may start or end outside of regular duty hours.

1.9 Contracting Officer's Representative (COR):

A COR will be appointed and identified by letter of designation, a copy of which will be provided to the Contractor by the Contracting Officer. The designation letter states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates, or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is not authorized to obligate the Government. If the work is not written in the contract, the COR is not authorized to request new work.

The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract, perform inspections necessary in connection with contract performance, maintain written and oral communications with the Contractor concerning technical aspects of the contract, issue written interpretations of technical requirements, including Government drawings, designs, specifications, monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies, coordinate availability of Government property, and coordinate site entry of Contractor personnel.

1.10 Key Personnel: All Contractor personnel attending meetings, answering Government telephones, and working in other situations where their Contractor status is not obvious to third parties shall identify themselves, to include proper marking of signature blocks in correspondence, to avoid creating an impression in the minds of members of the public that they are Government officials. The Contractor shall ensure that all documents or reports, produced by Contractors are suitably marked as Contractor products or that Contractor participation is appropriately disclosed.

1.11 Identification of Contractor Personnel: Contractor personnel shall be easily identifiable through the display of badges. The Contractor (to include subcontractors) shall provide each of their personnel an easily readable identification badge. The badge shall include the personnel's name, the Contractor's company name, the functional area of expertise (EMT or Paramedic), and a recent color photograph of the personnel. Companies with U.S. Government contracts will require their personnel to wear these badges visibly when performing work at Government workplaces unless this would be impractical because of mission or safety considerations. The Contractor shall collect all ID Badges upon completion of the contract or termination of personnel. A listing of issued ID cards shall be furnished to the COR prior to the contract performance date and updated as needed to reflect Contractor personnel changes.

1.11.1 Contractor Identification Badges: Contractor personnel shall be easily identifiable through the display of badges and must clearly reflect the level of provider EMT or Paramedic. (For services at Child, Youth, and School Services where children are present, recommend personnel wear identification when children are present.)

1.12 Reserved

1.13 Data Rights: The Government has unlimited rights to all documents and materials produced under this contract. All documents and materials, to include the source codes of software, produced under this contract shall be Government owned and are the property of the Government with all rights and privileges of ownership and copyright belonging exclusively to the Government. These documents and materials may not be used or sold by the Contractor without written permission from the Contracting Officer. All materials supplied to the Government shall be the sole property of the Government and may not be used for any other purpose. This right does not abrogate any other Government rights.

1.14 Non-Disclosure Requirements: Performance under this contract may require the Contractor to access data and information proprietary to a Government agency, another Government Contractor, or of such nature that its dissemination or use other than as specified in this work statement would be adverse to the interests of the Government or others. The Contractor and Contractor personnel shall not divulge or release data or information developed, or obtained under performance of this PWS, except to authorized Government personnel or upon written approval of the Contracting Officer. All documentation showing individual names or other personal information shall be controlled and protected under the provisions of the Privacy Act of 1974, Public Law 93-579, 5 United States Code (U.S.C.) Section 552a.

1.15 Protection of Government and Contract Information: Per Public Use Notice of Limitations stated by Defense imagery Management operations Center and contained at www.dimoc.mil/resources/limitations/, the Contractor shall not cite any information (e.g., contract information, pictures, locations, etc.) obtained through this contract on any hard copy or digital marketing tools to include its company website.

1.16 Organizational Conflict of Interest (OCI): Contractor and subcontractor personnel performing work under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements.) or perform evaluation services which may create a current or subsequent OCI as defined in FAR Subpart 9.5. The Contractor shall notify the Contracting Officer immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the Contracting Officer to avoid or mitigate any such OCI. The Contractor's OCI Mitigation Plan will be determined to be acceptable solely at the discretion of the Contracting Officer. In the event the Contracting Officer unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the Contracting Officer may affect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

1.17 Reserved

1.18 Reserved

1.19 Reserved

1.20 Phase In /Phase Out Period: To minimize decreases in productivity and to prevent possible negative impacts on additional services, the Contractor shall have personnel on board during the thirty (30) day phase in/ phase out periods. During the phase in period, the Contractor shall become familiar with performance requirements to commence full performance of services on the contract start date. Phase In/Phase Out Period are at no cost to the Government.

1.21 Safety: The Contractor personnel shall maintain safety and health standards compliant with requirements of the Occupational Safety and Health Administration (OSHA).

1.23 Required Training: The following provides information on training requirements.

1.23.1 Anti-Terrorism (AT) Level I Training: Combat Trafficking In Persons (CTIP)

Surveillance - In accordance with DFARS GPI 222.17 and FAR Clause 52.222-50, the KO will be notified immediately of any information from any source that alleges a contractor employee, subcontractor, and/or subcontractor employee has engaged in conduct that violates the United States Government "zero" tolerance policy regarding trafficking in persons. DFARS 222.17 mandates including surveillance for ensuring compliance with Combatting Trafficking in Persons (CTIP) in the QASP. Use the CTIP sample checklist from PGI 222.17. See the DoD CTIP website. The CTIP Checklist from the DoD COR Guidebook (see Exhibit 3) will be added to the COR's inspection checklist. If indicators are identified, the COR shall notify the KO immediately. CTIP surveillance reporting is completed biannually. CTIP surveillance information shall be submitted to the KO no later than the last working day of June and no later than the last working day in November.

All contractor employees, to include subcontractor employees, requiring access Army installations, facilities and controlled access areas shall complete AT Level I Awareness training within 30 calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever is applicable. The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee, to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after completion of training by all employees and subcontractor personnel. AT level I Awareness training is available at the following website: <http://jko.jten.mil> . If training cannot be conducted on the website, the Contractor shall coordinate with the COR who will contact the local AT Officer at their assigned location for classroom training. Contractor personnel completing training in the classroom will receive a certificate or the training attendance roster signed by the AT Officer. Verification of the training shall be provided to the COR within 30 days after completion of the training.

1.23.2 OPSEC Training: All Contractor, including subcontractors, shall complete Level I OPSEC training within 30 days of employment under this contract and annually thereafter. Verification of the training shall be provided to the COR within 30 days after completion of the training. OPSEC Level I training is available at <http://www.cdse.edu/catalog/elearning/GS130.html>.

1.23.3 iWATCH Training: The contractor and all associated subcontractors shall brief all employees on the local iWATCH Army program (training standards provided by the requiring activity ATO). This local developed training will be used to inform employees of the types of

behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees commencing performance with the results reported to the COR NLT 15 calendar days after contract award.

1.23.4 Information Assurance (IA) Training

1.23.4.1 For IA/IT training. All contractor employees and associated subcontractor employees must complete the DoD IA awareness training before issuance of network access and annually thereafter. All contractor employees working IA/IT functions must comply with DoD and Army training requirements in DoDD 8570.01, DoD 8570.01-M, and AR 25-2 within six months of appointment to IA/IT functions.

1.23.4.2 For IA/IT certification. Per DoD 8570.01-M, DFARS 252.239.7001, and AR 25-2, the contractor employees supporting IA/IT functions shall be appropriately certified upon contract award. The baseline certification as stipulated in DoD 8570.01M must be completed upon contract award. Training is available at <https://ia.signal.army.mil/DoDIAA/default.asp>.

1.23.4.3 Access and general protection/security policy and procedures. *This standard language is for contractor employees with an area of performance within an Army-controlled installation, facility, or area.* Contractor and all associated subcontractor employees shall provide all information required for background checks to meet installation access requirements to be accomplished by the installation Provost Marshal Office, Director of Emergency Services, or Security Office. Contractor workforce must comply with all personal identity verification requirements (CFR clause 52.204-9, Personal Identity Verification of Contract Personnel) as directed by DoD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in contractor security matters or processes.

1.23.4.4 For contractors requiring CAC. Before CAC issuance, the contractor employee requires, at a minimum, a favorably adjudicated National Agency Check with Inquiries (NACI) or an equivalent or higher investigation in accordance with Army Directive 2014-05. The contractor employee will be issued a CAC only if duties involve one of the following: (1) both physical access to a DoD facility and access, via logon, to DoD networks on-site or remotely; (2) remote access, via logon, to a DoD network using DoD-approved remote access procedures; or (3) physical access to multiple DoD facilities or multiple non-DoD federally controlled facilities on behalf of the DoD on a recurring basis for a period of 6 months or more. At the discretion of the sponsoring activity, an initial CAC may be issued based on a favorable review of the FBI fingerprint check and a successfully scheduled NACI at the Office of Personnel Management.

1.23.4.5 Controlled Unclassified Information (CUI). Include DFARS clause 252.204-7012, which requires the contractor to comply with NIST 800-171. Also include DFARS provision 252.204-2019 into solicitations. Acquisition officials should follow procedures outlined in DFARS 204.73 and verify vendors have an adequate NIST SP 800-171 summary assessment score within the Supplier Performance Risk System (within PIEE). If the score doesn't show a medium- or high-

level assessment with a score of 110 or better (as described in the "NIST SP 800-171 DoD Assessment Methodology"), include clause 252.204-7020 and obtain the vendor's "system security plan" and "plan of action" for NIST SP 800-171 verification and assurance by Army security officials.

1.23.4.6 Threat Awareness Reporting Program. For all contractors with security clearances. Per AR 381-12 Threat Awareness and Reporting Program (TARP), contractor employees must receive annual TARP training by a CI agent or other trainer as specified in 2-4b.

1.23.5 Personally Identifiable Information (PII): Contractor personnel, including subcontractors, performing services under this contract with access to PII and Government information shall complete "Identifying and Safeguarding PII" within 30 calendar days of employment. Contractor personnel shall complete refresher training every twelve (12) months from initial completion. The Contractor shall provide the COR a copy of the training certificates for its health care personnel no later than five (5) days after completion. Training is available at <http://iatraining.disa.mil/eta/piiv2/launchPage.html>

1.24 Government Property and Services: Government Furnished Property will not be provided under this contract however, the Government will provide the use of all available Munson Health Center and Directorate of Emergency Services equipment and support services, materials, publications and forms, and equipment required for contract performance (except as designated). Contractor shall keep Government furnished supplies, equipment and work areas in safe, orderly and clean condition. Contractor shall notify the Government whenever maintenance of equipment is required. Contractor shall abide by all MEDCEN and DHA requirements for physical security of DHA property and equipment.

1.25 Safeguarding Material and Confidentiality Information: The contractor shall be responsible for safeguarding all Government information and property provided or obtained in connection with this contract. The Contractor and/or Contractor HCPs may be required to provide testimony in legal or administrative procedures. Such participation shall be consistent with the disclosure requirements imposed in this contract and coordinated with the contracting officer.

1.26 Standards of Performance: The Government requires that the Contractor must provide technically competent certified personnel requirements and one ambulance with equipment and supplies to provide advanced life support transport Emergency Medical Services.

a. The Contractor shall follow the Federal and State of Kansas EMS requirements and remain in good standing throughout the life of this contract.

b. Other performance evaluation factors will be monitored that are not quantified by numerical measurements which include: Contractor providing personnel exceeding the minimum qualification standards; patient customer service comments; provider relationship with consultants; and Contractor relationship with hospital staff/government contracting personnel; compliance with garrison and clinic policy and procedures.

c. Performance Reports will be provided by the COR monthly to the Contracting Officer to ensure acceptable performance of the contract. The Contractor can request copies also be forwarded to the assigned Contractor POC. The Contractor POC will receive notice of UNACCEPTABLE PERFORMANCE within 7 days of the COR becoming aware of any unacceptable performance and will report it to the Contracting Officer.

d. The Contractor shall be responsible for the security of all patient information.

e. Neither the Contractor nor any of its contract service providers shall disclose or cause to disseminate any information concerning operations of military activities. Such action(s) could result in violation of the contract and possible legal actions.

f. All inquiries, comments or complaints arising from any matter observed, experienced, or learned of as a result of or in connection with the performance of this contract, the resolution of which may require the dissemination of official information, shall be directed to the contracting officer representative (COR) and the contracting officer.

g. The Contractor shall only conduct business with designated government personnel listed as points of contact (POCs). Names of authorized personnel shall be provided to the Contractor by the Government, in writing, and updated as necessary throughout the contract period. The Contractor shall designate the point of contact prior to the start of contract performance.

h. U.S. Government records, copies of original results and reports, verified original data, corrected data, and corrected supporting final reports are maintained by the Contractor, but remain the property of the U.S. Government. These files/results shall be surrendered to the COR.

i. Outcome: The Government requires that the Contractor provide qualified personnel who shall fulfill the performance requirements at a standard that meet DoD benchmarks for the Munson Army Health Center to provide a high level of quality health care to the Fort Leavenworth, Kansas community.

1.27 Government Quality Assessment and Improvement (QA&I): The Government will monitor the Contractor's performance under this contract using the quality improvement/assessment procedures established by Munson Army Health Center. Additionally, the Contractor's performance is subject to scheduled and unscheduled review by a Quality Assurance Evaluator as defined by the DHAPM 6025.13 and contract QASP specifics.

1.28 Productivity Standards: Acceptable measures include:

a. A maximum of 2 substantiated patient complaints per year per contract healthcare personnel, but if a complaint is particularly offensive the contract healthcare personnel may be removed immediately.

b. Munson Army Health Center and Garrison Director of Emergency Services shall monitor Contractor and contract personnel performance through Government information systems, records, patient records, customer service information, Contractor reports.

c. Contractor shall maintain a fill rate of 98% for all scheduled hours.

1.29 Credentialed Personnel Documentation. Submitting Credentials Packages.

a. Submit Credentials Package on Credentialed Contract Workers. The Contractor shall provide a complete and accurate credentials package on credentialed contract workers as outlined DHAPM 6025.13, Volume 4 to the COR for processing by the Munson Army Health Center Quality Team.

No start date will be established until credentials are verified by the credentials department. For healthcare providers on this contract that are privileged providers, privileges will be granted by the Munson AHC Quality team to meet the contract requirements by the commencement date. Concurrently, the Contractor will ensure that Army EMS receives a copy of the credentials, through the COR, of the EMT/Paramedic healthcare providers.

b. Primary Source Verification. The Contractor shall perform all primary source verifications and include all verifications with the credentials package or competency assessment folder information for non-privileged staff IAW DHAPM 6025.13, volume 4.

c. All educational items, current professional licenses, certifications or registrations, including those the healthcare provider previously held that are now inactive, expired, or suspended, must undergo initial Prime Source Verification (PSV). The Contractor shall obtain all paperwork, letters of reference, approvals, work history, etc. required by the MTF credentialing verification processes. The MTF staff will not assist the Contractor in obtaining any needed information for initial credentialing. The Contractor is responsible for submission of evidence of current competency for the healthcare provider that is used to provide health care services under the PWS. Contractors will ensure that credentials are provided to the MTF each year after the initial credentialing. Healthcare workers that do not maintain the professionals certifications and licensures to remain credentialed and/or privileged, will not remain on the contract.

d. Primary Source Verification by one of the following accepted methods:

-Written confirmation directly from the issuing authority.

-Verbal telephone confirmation from the issuing authority. A detailed record of the telephone interaction will be documented, which will include the names of the organization and the individual contacted, date/time, phone number, signature, and title of the person responsible for verification.

-Via the internet. Such verification is acceptable if the information is obtained directly from the professional organization's website. Identification of the individual making the website contact, and the date will be annotated on the web page printout

-If the contractor adds additional or replacement healthcare providers during the contract period, the replacement shall meet the same qualification and credentialing/privileging standards as outlined in the DHAPM 6025.13, vol. 4 as well as the health requirements as stated in this PWS.

e. When there are concerns for suspected misconduct, impairment, incompetence, or any conduct which adversely affects, or could adversely affect, the health or welfare of a patient, or staff member, this will be reported immediately to COR/KO. If there is a imminent concern for patients, staff or contract worker safety, a stop work will be immediately directed, involving the KO, COR and Contractor. The Contractor will cooperate with the USG if further investigation is required.

1.30 PERSONAL APPEARANCE:

a. The Contractor shall present a neat and clean appearance.

b. All outer clothing shall be laundered or dry cleaned as appropriate, well-fitting and fresh each workday.

c. Shoes shall cover the foot to meet sanitation and safety requirements. Open-toe shoes or sandals shall not be worn.

d. Fingernails shall be clean and not extend one quarter of an inch beyond the flesh tips. Acrylic nails or overlays are prohibited.

e. Hair shall be neatly groomed. The length and bulk of hair shall not be unkempt, or of extreme appearance.

f. Contractors shall wear dresses, pants or slacks, shirt or blouses with collar and sleeves, shoes and socks. T-shirts with company logo with identification of EMT and Paramedic are acceptable. Tank tops, cut-off pants, shower shoes or similar items of apparel are specifically prohibited. In all cases, Contractor health care personnel shall conform to the established personal appearance policy of Army installation.

1.31 HEALTH AND IMMUNIZATION REQUIREMENTS:

All Contractor HCP performing health care services under this contract assigned to a medical treatment facility are required to be screened for applicable immunizations or pre-existing immunity based on occupational risk, regardless of job series. The expense for all physical examinations to comply with the health requirements shall be borne by the contractor at no additional cost to the Government. All HCP shall comply with the Health and Immunization requirements identified below at the time of initial request for clinical privileges and annually thereafter.

(a) A history to show that Direct Health Care provider has completed a primary series of immunization with tetanus and diphtheria toxoids and that a booster dose containing tetanus, diphtheria and pertussis is current (within the past 10 years).

(b) All Contractor personnel performing direct health care services under this contract, who experience a parenteral (e.g., needle-stick or cut) or mucous membrane exposure (e.g., splash to the eye or mouth) to blood or bloody body fluids, shall receive prompt treatment. The health center will evaluate the source of exposure for risk of Hepatitis-B, Hepatitis-C, and will provide a report of the findings to the contractor and the contract provider. It shall be the contractor's responsibility to provide appropriate treatment as needed to possibly include Tetanus-Diphtheria booster, Immune Globulin, Hepatitis-B vaccine booster, or Hepatitis-B Immune Globulin.

(c) Failure to meet the requirements stated herein, or when test results determine a contract provider has a contagious disease, the Contracting Officer may, upon the advice of the health center staff, determine that such provider is not an acceptable individual to perform services under this contract.

Influenza Immunization:

- a. Contract health care personnel shall have the current influenza immunization unless documented by a physician to be medically contraindicated or because of bonafide Religious exceptions prior to commencement of work at health center. The Contractor shall provide proof to the COR that the Contractor personnel has received the inoculation.
- b. Contractor health care personnel shall receive annual influenza immunizations thereafter when directed by the COR. The Contractor shall provide proof to the COR that the Contractor personnel has received the inoculation.
- c. Infection Control: The Contractor shall adhere to the Centers for Disease Control guidelines.

PART 2

2. Definitions and Acronyms

2.1 Definitions: Although not inclusive of every term used within this PWS, the following provides a list of definitions used throughout this PWS and commonly used in the acquisition field.

Certification- A process by which a nationally recognized organization confirms that an individual healthcare organization has met certain predetermined standards or procedures required for certification.

Clinical Privileges- Permission granted by the Privileging Authority to provide medical and other patient care services. Clinical privileges define the scope and limits of practice for privileged providers and are based on the capability of the healthcare facility, licensure, relevant training and experience, current competence, health status, judgment, and peer and department head recommendations.

Clinical Privileging- The granting of permission and responsibility of a healthcare provider to provide specified or delineated healthcare within the scope of the provider's license, certification, or registration.

Contracting Officer - means a person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

Contracting Officer's Representative (COR) - As defined in DFARS 202.101, means an individual designated and authorized in writing by the Contracting Officer to perform specific technical or administrative functions. DoD Instruction (DoDI) 5000.72, Part 2 Definitions states the following when defining a COR: "Defined in subpart 202.101 of Reference (f). Any individual delegated responsibilities pursuant to subpart 1.602-2 of Reference (e), regardless of local terminology, shall be certified in accordance with this instruction. For example, local terminology can be COR, Contracting Officer's technical representative, technical point of contact, technical representative, alternate COR, administrative COR, assistant COR, line-item manager, task order manager, quality assurance personnel, quality assurance evaluator, or COR management." In addition, Army Regulation 70-13, Chapter 2, paragraph 2-2g, states, in part, the following when providing other surveillance support personnel to assist the COR when needed, "...These other surveillance support personnel may serve as on-site representatives of the COR in performance of actual contract surveillance if they meet all COR requirements and have been appointed by the Contracting Officer as alternate CORs."

Contractor - means a supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

Contractor-acquired Property - means property acquired, fabricated, or otherwise provided by the Contractor for performing a contract and to which the Government has title.

Credentials- The documents that constitute evidence of appropriate education, training, licensure, experience, and expertise of a healthcare provider.

Credentialed Healthcare Provider- Any individual identified by the DHA as credentialed. This may include an individual who maintains professional qualifications such as education, internship /fellowship, licensure, registration, and/or certification to practice in a clinical discipline.

Credentials Package- The documents that provide the necessary information for the Government to validate credentials on a credentialed contract worker prior to performance at a place of performance. The type of information in a credentials package includes, but is not limited to, qualifying degrees, education, professional experience, licensure/registration, and certification requirements. Additional requirements for credentialed contract workers will be outlined in the PWS and regulatory guidelines. A credentials package for privileged contract workers also provides the necessary information for the Government to grant clinical privileges at a place of performance. The type of information in a credentials package for a privileged contract worker also includes verification of current clinical competency. Additional requirements for privileged contract workers are outlined in the DHAPM 6025.13, volume 4.

Day - means, unless otherwise specified, a calendar day.

Defective Service - means a service output that does not meet the standard of performance associated with the Performance Work Statement.

Deliverable - means anything that can be physically delivered but may include non-manufactured things such as meeting minutes or reports.

Government-furnished Property - As reflected in FAR 52.245-1, Government-furnished Property "means property in the possession of, or directly acquired by, the Government and subsequently furnished to the Contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair, maintenance, overhaul, or modification. Government-furnished property also includes Contractor-acquired property if the Contractor-acquired property is a deliverable under a cost contract when accepted by the Government for continued use under the contract

Government Property - means all property owned or leased by the Government. Government property includes both Government-furnished and Contractor-acquired property. Government property includes material, equipment, special tooling, special test equipment, and real property. Government property does not include intellectual property and software.

High Level Objective (HLO) - means a key overarching result-based objective for a project necessary to achieve the project's vision. HLOs are similar to Level 2 in a Work Breakdown Structure. Each HLO may contain several statements to flesh out the areas necessary to meet the objective.

License- A grant of permission by an official agency of a State, the District of Columbia, or a Commonwealth, territory, or possession of the United States to provide health care within the scope of practice of a specified discipline. Licenses shall be current, active, valid and unrestricted. Additional licenses held by a provider must be in good standing whether they are inactive, expired, or limit the provider's practice to a military setting. Providers in the MHS may not have one active license and another currently suspended or probationary license.

Malpractice- A dereliction of professional duty, incorrect or negligent treatment, failure of professional skill or learning, as well as illegal or immoral conduct by any provider/professional responsible for health care, that results in death, injury, loss, illness or damage to the health care beneficiary.

National Practitioner Data Bank (NPDB)- The NPDB is a web-based repository of reports containing information on medical malpractice payments and certain adverse actions related to healthcare practitioners, providers, and suppliers. The NPDB is managed by the Department of Health and Human Services in accordance with Section 11101 of Title 42, United States Code.

Non-Personal Services Arrangement: The performance of health care services by contract workers under a nonpersonal services arrangement are not subject to day-to-day supervision and control by health care facility personnel comparable to that exercised over military and civil service

health care personnel engaged in comparable health care services. The Government shall neither supervise non-personal services employees nor control the method by which the Contractor performs these required tasks. The Contractor must obtain malpractice insurance for all non-personal service contract workers.

Primary Source Verification- Validation that a document is true and valid through contact with the issuing institution or its authorized agent.

Privileged Provider- An individual who possesses appropriate credentials and is granted authorized clinical privileges to diagnose, initiate, alter, or terminate regimens of healthcare with defined scope of practice.

Property Administrator - means an authorized representative of the Contracting Officer appointed in accordance with agency procedures, responsible for administering the contract requirements and obligations relating to Government property in the possession of a Contractor.

Physical Security - means that part of security concerned with physical measures designed to safeguard personnel; to prevent unauthorized access to equipment, installations, material, and documents; and to safeguard against espionage, sabotage, damage, and theft.

Quality Assurance - (or Government contract quality assurance) means the various functions, including, inspection, performed by the Government to determine whether a Contractor has fulfilled the contract obligations pertaining to quality and quantity.

Quality Assurance Surveillance Plan (QASP) - means the key Government-developed surveillance process document and is applied to Performance-Based Service Contracting (PBSC). The QASP is used for managing Contractor performance assessment by ensuring that systematic quality assurance methods validate that Contractor quality control efforts are timely, effective, and are delivering the results specified in the contract or task order. The QASP directly corresponds to the performance objectives and standards (i.e., quality, quantity, timeliness) specified in the Performance Work Statement (PWS). It provides specific details on how the Government will survey, observe, test, sample, evaluate, and document Contractor performance results to determine if the Contractor has met the required standards for each objective in the PWS. The QASP, with very few if any exceptions, is an internal to Government document.

Quality Control - means all necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

Statement - means the specific results-based activities required to satisfy HLOs. A statement contains a result, the context of the statement, and the required action(s). Statements focus on "what" is to be accomplished; however, they are not prescriptive in describing "how" the outcome is to be achieved. Each HLO may have several statements to flesh out the areas necessary to meet the objective. Statements are similar to Level 3 in a Work Breakdown Structure.

Subcontractor - means one that enters into a contract with a prime Contractor. The Government does not have privity of contract with the subcontractor.

Workday - The number of hours per day the Contractor provides services in accordance with the contract.

Work Week - Monday through Friday, unless otherwise specified.

2.2 Acronyms: Although not inclusive of every term used within this PWS, or that may be included in an acquisition, the following provides a list of acronyms commonly used in the acquisition field.

ACLS Advanced Cardiac Life Support Training

ACOR Alternate Contracting Officer's Representative

AFARS Army Federal Acquisition Regulation Supplement

AHA Activity Hazard Analysis

ALS Advanced Life Support

AOR Area of Responsibility

AR Army Regulation

AT Anti-terrorism

Account Validation System (AVS)

BLS Basic Life Support

CAC Common Access Card

CCE Contracting Center of Excellence

CFE Conventional Forces Europe

CFR Code of Federal Regulations

CONUS Continental United States (excludes Alaska and Hawaii)

COR Contracting Officer's Representative

COTS Commercial-Off-the-Shelf

DA Department of the Army

DD250 Department of Defense Form 250 (Receiving Report)

DD254 Department of Defense Contract Security Requirement List

DFARS Defense Federal Acquisition Regulation Supplement

DMDC Defense Manpower Data Center

DoD Department of Defense

EMS Emergency Medical Services

EMT Emergency Medical Technician

FAR Federal Acquisition Regulation

FCC Federal Communications Commission

GFP Government Furnished Property

HCP Health Care Provider

HLO High Level Objective

HIPAA Health Insurance Portability and Accountability Act of 1996

IA Information Awareness

IAC Installation Access Control

IACO Installation Access Control Office

ID Identification

IGCE Independent Government Cost Estimate

IT Information Technology

JPAS Joint Personnel Adjudication System

KO Contracting Officer

MEDDAC U.S. Army Medical Department Activity

MEDCEN United States Army Medical Center

MTF Military Treatment Facility

NREMT National Registry of Emergency Medical Technicians

OCI Organizational Conflict of Interest

ODC Other Direct Costs

OPSEC Operations Security

PA Property Administrator

PALS Pediatric Advanced Life Support

PII Personally Identifiable Information

PIPO Phase In/Phase Out

POC Point of Contact

PRS Performance Requirements Summary

PWS Performance Work Statement

QA Quality Assurance

QAP Quality Assurance Program

QASP Quality Assurance Surveillance Plan

QC Quality Control

QCP Quality Control Program

RA Requiring Activity

RCO Regional Contracting Office

SIGE Safety and Health Protection Plan

SPM Senior Program Manager

TE Technical Exhibit

USAG United States Army Garrison

PART 3

3. Government Property and Services

3.1 Facilities: The Government will provide necessary workspace and desk space at the Ft. Leavenworth Fire Department. The Contractor shall be responsible in providing their own ambulances, equipment and supplies and will coordinate to have vehicles and supplies located on the garrison.

3.2 Equipment: The Contractor will provide ambulance and fuel, maintenance, and insurance. The Government will provide storage and parking space for these vehicles.

3.3 Materials: The Government will provide Standard Operating Procedures (SOPs), Local Instructions and Policies.

3.4 Training: The Government will provide the following training / orientation: AT Level 1 Awareness, OPSEC, iWATCH, MHS Genesis Training, Health Insurance Portability and Accountability Act (HIPAA) Privacy and Security Training, Annual Training Updates, and Government Unique Training.

3.5 Common Access Cards (CAC): The Government will provide Common Access Cards (CAC) via the Trusted Associate Sponsorship System (TASS) (Web site <https://www.dmdc.osd.mil/tass/>).

PART 4

4. Contractor Furnished Property and Services

4.1 General: The Contractor shall not be responsible for providing rental offices.

4.2 License: The Contractor shall provide a copy of the Company's State of Kansas EMS License. This is in addition to all other licenses/certifications required in the PWS.

4.3 Materials: The Contractor will provide contract-specific materials.

4.4 Vehicles and Equipment: The Contractor will provide vehicles or equipment.

4.5 Background Checks: The Contractor shall provide Background Checks in accordance with this PWS and as determined by the Government.

PART 5

SPECIFIC TASKS AND QUALIFICATIONS

5.1 Basic Services: The quality of Ground Ambulance Services shall meet or exceed reasonable standards of professional practice for healthcare as determined by the same authority that governs military medical professionals in the same discipline.

5.2 Tasks: The EMT and Paramedic shall:

- a. Within two (2) hours of conclusion of patient encounter(s) HCPs will properly complete and provide to the Incident Commander the government approved EMS paper or electronic patient care record as directed by the COR and Army Medical Director for the installation(s). Report shall indicate at a minimum, the patient's name, history, assessment and treatment given. The report shall be legible, and all treatment provided properly documented.
- b. HCPs will respond to on-site accidents and other emergencies involving injury and illness and sometimes encounter situations which may be life threatening. Upon arrival at the scene, make an independent preliminary assessment of the patient's condition and select from a variety of prescribed protocols the one which he/she considers appropriate under the given circumstances. Proceed to provide the treatment as prescribed in the protocol. Make modifications to the protocol, if necessary, within prescribed limits. Conduct a complete examination of the patient to determine the nature, extent, and seriousness of his/her condition and search for medical alert symbols. Determine, with due regard to the patient's condition, if and how he/she can be moved and to which medical facility he/she should be transported. Prioritize treatments for patients having multiple problems and employ a variety of established emergency medicine techniques, methods and equipment to the appropriate medical facility.
- c. All vehicles shall be checked by the HCPs at the beginning of each shift for appropriate stock of supplies and equipment. All medical equipment assigned to the Contractor shall be checked by the HCPs at the beginning of each shift to ensure proper operational condition. Vehicles are to be inspected and cleaned inside and out daily; vehicles will be washed only as needed. After each patient transport, the Contractor is to clean the vehicle in accordance with applicable MEDDAC infection control standard operating procedures. The Contractor shall know at all times the availability, location, and status of all emergency ambulances and equipment.
- d. Contractor shall, within two minutes, depart towards emergency calls from within the previously identified area of responsibility.
- e. Contractor shall integrate and operate as part of the installation emergency response plan and follow instructions of the Incident Commander.
- f. Contractor shall not accept direct patient transfer calls.
- g. Ambulance shall be located at the Fort Leavenworth Fire Station #2.
- h. Contractor shall depart to Army Corrections Command emergencies with a medical/airway bag, a defibrillator, and an ambulance litter when requested.
- i. Upon arrival at any designated emergency room, Contractor shall continue to render emergency care to the patient until patient is turned over to the care of the attending physician. Contractor shall document the care provided at the site, enroute to and in the designated Emergency Room by completing an Emergency Medical Service (EMS) Report within thirty minutes after being released by the attending physician. All care shall be provided in accordance with Joint Prehospital Emergency Care Protocols.

j. Contractor shall provide all original EMS reports prepared for all patients of ambulance transports to the Emergency Medicine Department of nearby civilian hospitals.

k. Contract HCPs shall be required to provide assistance to Federal/Army prison incidents. Such assistance shall be provided at no additional expense to the Government. Inmates are moved to a secure sally port area known as "West Gate" where initial treatment and packaging for transport occurs - additionally, the military prisons are responsible for providing security personnel should an inmate require transport outside of the prison.

l. Attend to patients during medical evacuation, ground and helicopter.

m. Perform the following medical procedures, as required, in strict compliance with standing orders and Joint Prehospital Emergency Care protocols.

n. Airway Obstruction and Respiratory Arrest. Based on the patient's condition, open and maintain the airway (using the head-tilt maneuver, jaw-thrust maneuver, face down modified jaw thrust maneuver, and esophageal obturator airway technique). Perform pulmonary resuscitation if breathing fails to start spontaneously upon the opening of the airway, using such techniques as Bag Valve Mask (BVM).

o. Cardiac Arrest. Paramedic will provide cardiopulmonary resuscitation, including advanced life support techniques, such as IV insertion, airway management, administration of drugs, etc., varying the approach for small children/infants. Defibrillate cardiac arrest victims.

p. Mechanical Breathing Aids. Determine the need and equipment to provide appropriate life support, e.g., oropharyngeal and nasopharyngeal airways, etc.

q. Shock and Fluid Therapy. Accurately determine blood pressure readings to be used in conjunction with a variety of symptoms to identify the nature of the shock. Assess the state of dehydration and over-hydration, coordinate with the physician, and consider hypovolemic shock or other variations of shock when administering IV fluids.

r. Wounds. Recognize and determine the causes and basic medical implications of closed and open soft tissue wounds and treats appropriately. Apply appropriate bandages.

s. Fractures of Torso and Extremities. Recognize fractures, dislocations and sprains. Determine the proper method and take steps to immobilize the patient for transport.

t. Head, Face, Neck, and Spine Injuries. Identify the symptoms of potential life-threatening dangers and provide appropriate immobilization for injuries, Eye, Chest, Abdomen, and Genitalia. Treat a variety of eye injuries, e.g., impaled objects, chemical, heat, and light burns, etc. Recognize and treat chest trauma/lung collapse symptoms caused by various chest intrusions. Recognize, treat, and immobilize for transport injuries to the abdomen and genitalia while preventing shock, monitoring/evaluating vital signs, control of bleeding, etc.

- u. Childbirth. Assist in childbirth. Respond to pre-delivery complications, e.g., convulsions, heart /lung hemorrhaging, etc., as well as normal deliveries, newborn resuscitation, breech delivery, prolapsed cord ,miscarriage, and premature infant birth.
- v. Miscellaneous Medical Emergencies. Recognize, stabilize and treat a wide variety of medical emergencies, e.g., bites/stings, heart attacks, strokes. Employ communicable disease control and containment measures.
- w. Environmental Emergencies. Assess the seriousness of and treat heat, electrical, and radiation burns, heat exhaustion/stroke, etc.
- x. Pharmacology. Paramedic when providing treatment of an injury or illness that requires the administration of drugs, will verify the medication to be administered with the designated physician, calculate the dosage required, and administer the drug through an IV bag, IV insertion, or intra-muscular injection.
- y. Extrication and Packaging of Victims. Use a variety of light rescue tools and equipment for removal of victims/patients.
- z. Telemetry and Communication. Use radio equipment and follow the Federal Communications Commission (FCC) procedures to communicate with and transmit EKG information to the emergency service physician.
- aa. Perform the following emergency vehicle procedures, as required, in compliance with standing orders and protocols.
- bb. Safely operate and drive an emergency transport vehicle or ambulance.
- cc. When operating an emergency or patient transport vehicle, select the most efficient route to and from the site of the emergency, considering traffic patterns, health facility locations, etc. Use telephone and radio communications equipment available in the vehicle. Adhere to traffic ordinances and regulations pertaining to operation of emergency and patient transport vehicles.
- dd. EMS personnel will execute daily vehicle checks in accordance with established procedures to ensure safety and readiness of vehicle, equipment, and supplies.
- ee. After each trip, replace used linens, blankets, and other supplies; send supplies and equipment for sterilization as required; and check ambulance supplies and equipment to ensure the vehicle is ready for the next run.
- ff. Perform routine operator inspection on the vehicles and equipment, as required to maintain the vehicle in an operational status by checking items such as tire pressure and tire tread wear, brake, head and signal lights; readily accessible belts and wiper blades; antifreeze, wiper fluid, water, oil, and fuel sufficiency; siren function and battery charge; and inform the appropriate Government personnel if maintenance is required. Ensure vehicles are kept clean and neat.

5.2.1 Tasks: The Contractor Physician Medical Director shall:

- a. Serve as patient advocate in the EMS system with direct contact information provided to the government.
- b. Set and ensure compliance with patient care standards including 911 communications standards and medical protocols.
- c. Develop and implement the protocols and standing orders under which the out-of-hospital care clinician functions.
- d. Develop and implement the process for the provision of all aspects of Medical Oversight.
- e. Ensure the appropriateness of initial qualifications of out-of-hospital clinicians involved in patient care and dispatch.
- f. Ensure the qualifications of out-of-hospital clinicians involved in patient care and dispatch are maintained on an ongoing basis through education, testing, and credentialing as the local/state authorities have determined.
- g. Develop and implement an effective continuous improvement program that targets both system and patient care improvement.
- h. Has authority to restrict, suspend, or terminate patient care activities of clinicians who deviate from and/or fail to meet established standards.
- i. Promote and disseminate EMS research and its findings.
- j. Maintain liaison with the medical community including, but not limited to, hospitals, emergency departments, physicians, out-of-hospital clinicians, and nurses.
- k. Interact with regional, state, and local EMS authorities to ensure that standards, needs, and requirements are met, and resource utilization is optimized.
- l. Promulgate public education and information on the prevention of emergencies.
- m. Maintain knowledge levels appropriate for an Installation Medical Director through continued education.
- o. The Contract Medical Director shall not give medical direction or provide oversight to a government employee or personnel outside this contract.

5.2.2 Tasks: The Senior Level Paramedic/On-Site Program Manager shall:

- a. Senior Level Paramedic that shall serve as an On-Site program Manager for this contract. This representative shall not be employed under another contract/task order with the Contractor. At least ten working days prior to performance start date, the Contractor shall provide in writing to the

COR, the On-Site Program Manager's contact information. Changes in the On-Site Program Manager, at any time after contract commencement, shall be in writing to the COR/ KO at least five working days prior to the change.

b. The Contractor's On-Site Program Manager shall possess sufficient corporate authority to effectively deal with all contract situations that arise. Shall have experience in planning, directing, and evaluating an Emergency Medical Services (EMS) Systems operational, clinical, scheduling, and training performance of front-line EMS staff.

c. The On-Site Program Manager shall assist the COR with the in-processing of the Contractor personnel. The On-Site Program Manager shall, at no additional cost, meet with the COR and department chief, or his/her representative when requested to discuss any problems that the Contractor's personnel may be experiencing during the performance of this contract. Problems experienced by the Government with the Contractor's performance will be discussed and resolved. Unresolved problems will be referred to the KO for resolution.

d. The Contractor shall provide points of contact (POC) information for administration of the contract during after normal business hours. The POC for other than normal business hours will be contacted only in the event of emergencies. Accordingly, the named individual(s) shall possess sufficient corporate authority to effectively deal with emergency situations, and the telephone number provided shall be functioning at all times other than normal business hours. If there are different POCs for different conditions, such as weekdays, weekends, holidays, clearly provide such information.

5.3 Professional Qualifications:

Healthcare Provider Requirements

Professional Liability: The Contractor shall immediately notify the Government (i.e., COR or Government Supervisor at the performance location) of any suit, action filed or claim made against a contract worker, which occurred as a result of work performed by the contract worker under this contract.

Malpractice Insurance. Malpractice Insurance: The Contractor shall comply with applicable malpractice requirements based on the type of contract arrangement identified in the PWS. The DHA PM 6025.13, vol. 4 and the FAR Clause 52.237-7, shall be followed.

Malpractice for Non-Personal Services Arrangements. When the PWS specifies a non-personal services arrangement for contract workers, the Contractor, and all subcontractors, shall meet the requirements of FAR Clause 52.2377, Indemnification and Medical Liability Insurance, for its contract workers on the contract. \$1,000,000.00 per occurrence and \$3,000,000.00 in the aggregate.

Basic Life Support (BLS) Certification Contract workers shall maintain current certification in Basic Life Support (BLS) from the American Heart Association, or the American Red Cross. Certification cards must display the American Heart Association, the American Red Cross or other

approved certifying body emblem. Web-based (on-line) classes are not acceptable by the Government. The Contractor will not bill the Government for contractor time to attend Basic Life Support (BLS) certification training.

Licensure. Documentation demonstrating permission by an official agency of a State, the District of Columbia, or a Commonwealth, territory, or possession of the United States to provide health care within the scope of practice of a specified discipline. Licensure, certification, or registration is a qualification for employment as a healthcare provider in the MHS. Healthcare providers must have one current, valid, active, and unrestricted license. Additional licenses held by a provider must be in good standing whether they are inactive, expired, or limit the provider's practice to a military setting. Providers in the MHS may not have one active license and another currently suspended or probationary license.

Non-Personal Services Arrangement and Licensure. Contract workers under a non-personal services arrangement requiring licensure must maintain an unrestricted license in the U.S. jurisdiction within which the contract worker is performing on the contract as mandated by Title 10 USC 1094 and the DHAPM 6025.13, Volume 4.

Clinical Competency. Credentialed contract workers shall meet credentialing and privileging clinical competency standards, current within the two years preceding the start of services under the contract, IAW DHA PM 6025.13, Volume 4, in addition to other regulatory guidelines as applicable.

Medical Director/Physician:

Includes but not limited to: Primary and Specialty Care Physicians

Minimum Qualifications:

- **Degree:** Doctor of Medicine (M.D.) or Doctor of Osteopathy (D.O.).
- **Education:** Graduation from a medical school in the United States, Canada, or approved by the Liaison Committee on Medical Education of the American Medical Association (AMA), graduation from a college of osteopathy approved by the American Osteopathic Association (AOA), or graduation from a medical school with evidence of Educational Commission for Foreign Medical Graduates (ECFMG) certification.
- **Certification:** The DoD only recognizes certifications issued by boards that are members of the American Board of Medical Specialties (ABMS) or the AOA Bureau of Osteopathic Specialists
- **Internship/Residency/Fellowship:** Completion of an accredited residency approved by the Accreditation Council for Graduate Medical Education (ACGME).
- **Experience:** One year within the last two years' experience, post-residency, in emergency physician.
- **Licensure:** Current, full, active, and unrestricted license to practice medicine.
- The physician EMS Medical Director will be a board certified emergency room physician.

Emergency Medical Technicians (EMT)/ Paramedics

Includes, but not limited to: Nationally Registered Emergency Medical Technician (NREMT); Nationally Registered Paramedic (NRP)

Minimum Qualifications:

- **Degree:** State License or State Certification
- **Education:** Certification from the NREMT
- **Certification:** Possess and maintain national certification from the National Registry of Emergency Medical Technicians (NREMT).
- **Experience:** One year of experience within the last two years as an EMT or NRP.

In specialties that are not licensed by the State, and the requirements of the granting authority for State registration or certification are highly variable, there must be validation by a national organization that the individual is professionally qualified to provide health care in a specified discipline. Examples of this are the National Commission on the Certification of Physicians Assistants (NCCPA) for physician assistants (PAs) and the National Registry of Emergency Medical Technicians (NREMT) for emergency medical technicians (AR 40-68).

EMT/ Paramedic Requirements. The HCP shall obtain any certification to perform the contract requirements. EMT personnel shall have certification corresponding to the individual's level of training. Each EMT shall possess a valid driver's license and have completed an approved emergency vehicle operations course. EMT personnel shall meet all requirements established by their state/territory of licensure and the National Registry of Emergency Medical Technicians (NREMT). EMT personnel shall be qualified to practice as an EMT in state or territory and obtain the National Registry of Emergency Medical Technicians (NREMT) Certification within 180 days of employment. The HCP shall obtain at his or her expense any permits or licenses to conduct this contract.

PART 6

6. Applicable Publications (Current Editions): The following publications, manuals, regulations, etc. are mentioned in this PWS and are listed below.

Applicable MTF Standard Operating Procedures (SOPs) and Policies

AR 40-1 Composition, Mission, and Functions of the Army Medical Department

AR 40-3 Medical, Dental, and Veterinary Care

AR 40-68 Clinical Quality Management

AR 40-501 Standards of Medical Fitness

AR 385-10 The Army Safety and Occupational Health Program

AR 385-40 Accident Investigation and Reporting

DOD 6055.5-M Occupational Medical Examination and Surveillance Manual

DA PAM 385-40 Army Accident Investigation & Reporting

OPORD 20-06 Army Emergency Medical Services Pre-Transition 2023 United States Departments of the Army and Air Force, Joint Prehospital Emergency Care Protocols

OTSG/MEDCOM 385-2 U.S. Army Medical Command Safety Program

6.1. Advisory.

AR 310-25 - Dictionary of United States Army Terms

6.2. Standard Forms.

SF 85-P - Questionnaire for Public Trust Positions

SF 88 - Medical Record - Report of Medical Examination

SF 93 - Report of Medical History

SF 504 - Medical Record-History

SF 505 - Medical Record - History - Parts 2 and 3

SF 506 - Medical Record - Physical Examination

SF 507 - Medical Record

SF 509 - Medical Record - Progress Report

SF 513 - Medical Record - Consultation Sheet

SF 515 - Medical Record-Tissue Examination

SF 519-B Radiologic Consultation Request/Report (Radiology/Nuclear Medicine/Ultrasound /Computed Tomography Examinations

SF 523 - Medical Record -Authorization for Autopsy

SF 523A Disposition of Body

SF 541 - Medical Record - Gynecologic Cytology

SF 550 - Medical Record -Urinalysis

SF 551 - Medical Record -Serology

SF 557 - Medical Record - Miscellaneous

SF 558 - Medical Record - Emergency Care and Treatment

SF 600 - Medical Record - Chronological Record of Medical Care

6.3. Department of Army.

DA 3894 - Hospital Report of Death

DA 4106 - Incident Report

DA 4700 - Medical Record - Supplemental Medical Data

DA 5008 - Telephone Medical Advice/Consultation Record

6.4. Department of Defense.

DD 689 - Sick Slip, Individual

DD 1289 - Prescription Form

DD 2161 - Medical Care, Referral for Civilian

DD 2795 - Pre-Deployment Health Assessment Questionnaire

DD 2796 - Post-Deployment Health Assessment

6.3.4. Other Forms.

FD Form 258 - FBI US Department of Justice Fingerprint Card

6.5. Applicable Publications

6.5.1. Public Law:

Public Law 91-596 Occupational Safety and Health Act of 1970

Public Law 104-191 Health Insurance Portability and Accountability Act of 1996

6.5.2. **Accreditation Manuals:**

The Joint Commission (TJC) Manual (Current Edition)

6.5.3. **Defense Health Agency:**

DHA-AI 001 Telework Program

DHA-AI 003 Physical Security Program

DHA-AI 034 Drug-Free Workplace Program

DHA-AI 050 Accounting of Disclosures of Personally Identifiable Information (PII) and Protected Health Information (PHI)

DHA-AI 5015.01 Records Management

DHA-AI 5200.02 Information Security Program

DHA-AI 5200.03 Operations Security (OPSEC) Program

DHAPI 6000.03 Life Support Training Certification Requirements and Guidance

DHAPI 6010.02 MHS Prescription Drug Monitoring Program

DHAPI 6015.02 Beneficiary Counseling and Assistance Coordinator (BCAC) and Debt Collection Assistance Officer (DCAO)

DHAPI 6025.04 Pain Management and Opioid Safety in the MHS

DHAPI 6025.06 Standardized Templates for Primary Care Clinical Encounter Documentation

DHAPI 6025.10 Standard Processes, Guidelines, and Responsibilities of the DoD Patient Bill of Rights and Responsibilities in the Military Health System (MHS) Military Medical Treatment Facilities (MTFs)

DHAPI 6025.20 Medical Management (MM) Program within the Military Health System (MHS)

DHAPI 6025.26 Standard Processes for the Military Health System (MHS) Nurse Advice Line (NAL)

DHAPI 6025.27 Integration of Primary Care Behavioral Health (PCBH) Services into Patient-Centered Medical Home (PCMH) and Other Primary Care Service Settings within the Military Health System (MHS)

DHAPI 6025.28 Standard Processes and Procedures for Communication of Laboratory and Radiology Results

DHAPI 6025.29 Provision of Human Immunodeficiency Virus (HIV) Pre-Exposure Prophylaxis (PrEP) for Persons at High Risk of Acquiring HIV Infection

DHAPI 6025.33 Acupuncture Practice in Military Treatment Facilities

DHAPI 6025.39 Medical Ethics in the Military Health System

DHAPI 6025.42 Routine Adult Transthoracic Echocardiogram (TTE) Standards for all Military Medical Treatment Facilities (MTFs).

DHAPI 6040.07 Medical Coding of the DOD Health Record

DHAPI 6401.01 Dental Sedation Medical Management

DHAPI 6490.02 Behavioral Health (BH) Treatment and Outcomes Monitoring

DHAPM 6025.01 Primary Care Behavioral Health (PCBH) Standards

DHAPM 6025.13, Volumes 1-7 Clinical Quality Management in the Military Health System

6.5.4. Department of Defense (DoD):

DoD 5200.1-R Information Security Program

DoD 5200.2 Personnel Security Program

DoDI 5200.46 DoD Investigative and Adjudicative Guidance for Issuing the Common Access Card

DoD 5210.42-R Nuclear Weapons Personnel Reliability Program (PRP) Regulation

DoD 5400.7-R DoD Freedom of Information Act

DoD 5400.11-R Department of Defense Privacy Program

DoD 6010.13-M Medical Expense and Performance reporting System for Fixed Military Medical And

Dental Treatment Facilities Manual

DoD 6010.15-M Military Treatment Facility Uniform Business Office (UBO) Manual

DoD 6015.1-M Glossary of Healthcare Terminology

DoD 6025.18-R DoD Health Information Privacy Regulation

DoD 6055.5-M Occupational Medical Examinations and Surveillance Manual

DoD 8580.02-R HIPAA Security Rule

DoDD 5144.02 Information Technology Standards in the DoD

DoDD 5205.2 DoD Operations Security (OPSEC) Program

DoDD 5400.11 DoD Privacy Program

DoDD 5500.07 Standards of Conduct

DoDD 6000.14 Patient Bill of Rights and Responsibilities in the Military Health System (MHS)

DODM 6025.13 Medical Quality Assurance (MQA) in the Military Health System (MHS)

DoDD 6040.41 Medical Records Retention and Coding at Military Treatment Facilities

DoDD 6205.02E Policy and Program for Immunizations to Protect the Health of Service Members and

Military Beneficiaries

DoDD 8190.3 Smart Card Technology

DoDD 8500.01E Information Assurance

DoDI 1100.22 Policy and Procedures for Determining Workforce Mix

DoDI 1402.5 Criminal History Background Checks on Individuals in Child Care Services

DoDI 3020.37 Continuation of Essential DoD Contractor Services During a Crises

DoDI 5200.02 DoD Personnel Security Program (PSP)

DoDI 6000.11 Patient Movement

DoDI 6015.23 Delivery of Healthcare at Military Treatment Facilities: Foreign Service Care; Third Party Collection; Beneficiary Counseling and Assistance Coordinators (BCACs)

DoDI 6025.8 Ambulatory Procedure Visit (APV)

DoDI 6025.13 Medical Quality Assurance (MQA) and Clinical Quality Management in the Military Health System Health System (MHS)

DoDI 6025.18 Privacy of Individual Identifiable Health Information in DoD Health Care Programs

DoDI 6040.40 Military Health System Data Quality Management Control Procedures

DoDI 6040.42 Medical Encounter and Coding at Military Treatment Facilities

DoDI 6040.43 Custody and Control of Outpatient Medical Records

DoDI 6205.2 Immunization Requirements

PERFORMANCE REQUIREMENT SUMMARY (PRS) (Ref 4.2.)

Performance Objective	Performance Standard	Performance Threshold	Performance Noncompliance	Method of Surveillance
1) PWS Part 5, 5.1. thru 5.5. The contract worker shall comply with all specific tasks requirements to provide safe, effective, and evidence-based PHEMS that meets all applicable standards.	Compliance with all Specific Tasks as stated within Part 5 of the PWS.	Contractor shall achieve 95% or greater total cumulative PRS inspection checklist compliance.	-Result in Corrective Action Request (CAR) -Increased surveillance -Negative CPAR	-100% Inspection -Random Inspection -Customer Feedback
2) PWS Part 5, 5.2. The contractor shall ensure all clinical	Compliance with accurate and complete documentation	Contractor shall achieve 95% or greater total cumulative PRS	-Result in Corrective Action Request (CAR) -Increased surveillance	-100% Inspection -Random Inspection

encounters are documented accurately and completely in the EMS paper or electronic patient care record no later 2 hours past the conclusion of the call.	of all clinical encounters no later than 2 hours following conclusion of the encounter.	inspection checklist compliance.	-Negative CPAR	-Customer Feedback
3) PWS Part 5, 5.1. thru 5.5. The contractor shall deliver response, care and transport services in accordance with established standards-based timelines.	Compliance with delivery of response, care and transport services in accordance with established standards-based timelines.	Contractor shall achieve 90% or greater total cumulative PRS inspection checklist compliance.	-Result in Corrective Action Request (CAR) -Increased surveillance -Negative CPAR	-100% Inspection -Random Inspection -Customer Feedback
4) PWS Part 1.29. and 5.1 and 5.3. The contractor shall ensure all personnel maintain current unexpired licensure, credentialing, privileging, and contingency training required.	Compliance with maintaining current, unexpired, and valid licensure, credentialing, privileging, and contingency training required for full paramedic capability.	Contractor shall achieve 100% total cumulative PRS inspection checklist compliance	-Result in Corrective Action Request (CAR) -Increased surveillance -Negative CPAR	-100% Inspection -Re-inspection upon new personnel assigned -Random Inspection -Customer Feedback
5) PWS Part 1.11 and 5.2. The contractor shall	Compliance in the ability to work with and	Contractor shall achieve 95% or greater total	-Result in Corrective Action Request (CAR)	-100% Inspection

ensure contract workers demonstrate professional behavior, effective communication, and appropriate interaction with patients, staff, and emergency services personnel.	interact with others demonstrating professional behavior, effective communication, and appropriate interaction with patients, staff, and emergency services personnel.	cumulative PRS inspection checklist compliance.	-Increased surveillance -Negative CPAR	-Random Inspection -Customer Feedback
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INVOICING AND PAYMENT

The contractor shall submit itemized invoices no more than 30 days after preventive maintenance service completion. The contractor shall submit monthly, in arrears, itemized invoices in accordance with DFARS 252.232-7003 & 252.232-7006, for services rendered under this contract. Information regarding Wide Area Workflow is available on the Internet at <https://piee.eb.mil>.

4. EXCLUSION FROM PARTICIPATION IN FEDERAL HEALTH CARE PROGRAM Exclusion from Participation in Federal Health Care Programs (October 2015)

a. The contractor shall not employ or contract with any individual or entity (hereinafter collectively referred to as "person") to provide items or services that will be included in invoices submitted to the government under this contract if such person is listed on the Department of Health and Human Services (HHS) Office of the Inspector General (OIG) List of Excluded Individuals and Entities (LEIE) or the TRICARE Sanctioned Provider List. The government is legally prohibited from paying for provision of items or services by such persons. The prohibition extends to services beyond direct patient care, such as services of persons in executive or leadership roles and administrative and management services, whether or not such services are billed separately. The LEIE may be found at <http://oig.hhs.gov/fraud/exclusions.asp>, and the TRICARE Sanctioned Provider list at

<http://www.health.mil/Military-Health-Topics/Access-Cost-Quality-and-Safety/Quality-And-Safety-of-Healthcare/Program-Integrity/Sanctioned-Providers>. The LEIE and TRICARE Sanctioned Provider List are hereinafter collectively referred to as "the Lists."

b. Prior to start of contract performance, the contractor shall (a) query the Lists to determine whether the name of any person the contractor employs or contracts with to provide services or items for which payment may be made under this contract appears on the Lists, and (b) certify to the Contracting Officer that the contractor has queried the Lists and no such names appear on either of the Lists.

c. During performance of the contract, and prior to persons other than those whose names were queried in accordance with paragraph 2, above, (hereinafter "new persons") providing services or items under the contract, the contractor shall (a) query the Lists as in paragraph 2, and (b) certify to the Contracting Officer that the names of such new persons do not appear on either of the Lists.

d. The contractor is advised that during performance of the contract, MTF personnel will perform a recurrent recheck of the names of contractor personnel working in the MTF against the Lists, as specified in OTSG/MEDCOM Policy Memo 15-037. The government will notify the contractor in the event any contractor personnel working in the MTF appear on either of the Lists.

e. Should any person providing items or services under the contract appear on either of the Lists at any time during contract performance, the contractor shall (a) in cases where the contractor identified the person, notify the Contracting Officer, and (b) promptly remove that person from the contract.

f. Violation of any aspect of the above paragraphs shall be considered a material breach of the contract and may result in termination of the contract.

g. The contractor is further advised that, in accordance with Civil Monetary Penalties Law [CMP] (codified at 42 USC (S) 1320a-

7a): There are steep civil monetary penalties associated with billing the government for providing items or services by a person on either of the Lists, and with failing to return to the government any overpayments received for provision of such items or services.

Billing under the contract for provision of items or services by a person on either List may also result in exclusion of the person that employs or contracts with such person. HHS OIG has issued a Special Advisory Bulletin on the Effect of Exclusion from Participation in Federal Health Care Programs with additional information on the CMP. The Special Advisory Bulletin may be found at <http://oig.hhs.gov/exclusions/files/sab-05092013.pdf>.

4. Personally Identifiable Information, PROTECTED HEALTH INFORMATION, AND FEDERAL INFORMATION REQUIREMENTS

(Revised 10/27/2020)

General Requirements Overview - Personally Identifiable Information (PII), Protected Health Information (PHI) and Federal Information Laws

This Section addresses the contractor's requirements under The Privacy Act of 1974 (Privacy Act), The Freedom of Information Act (FOIA), and The Health Insurance Portability and Accountability Act (HIPAA) as set forth in applicable statutes, implementing regulations and Department of Defense (DoD) issuances. In general, the contractor shall comply with the specific requirements set forth in this Section and elsewhere in this Contract. The contractor shall also comply with requirements relating to records management as described herein.

This contract incorporates by reference the federal regulations and DoD issuances referred to in this Section. If any authority is amended or replaced, the changed requirement is effective when it is incorporated under contract change procedures. Where a federal regulation and any DoD issuance govern the same subject matter, the contractor shall first follow the more specific DoD implementation unless the DoD issuance does not address or is unclear on that matter. DoD issuances are available at <http://www.dtic.mil/whs/directives>.

For purposes of this Section, the following definitions apply.

1. DoD Privacy Act Issuances means the DoD issuances implementing the Privacy Act, which are DoDI 5400.11, DoD Privacy and Civil Liberties Programs, January 29, 2019 and DoDI 5400.11- R, Department of Defense Privacy Program, May 14, 2007. **HIPAA Rules** means, collectively, the HIPAA Privacy, Security, Breach and Enforcement Rules, issued by the U.S. Department of Health and Human Services (HHS) and codified at 45 Code of Federal Regulations (CFR) Part 160 and Part 164, Subpart E (Privacy), Subpart C (Security), Subpart D (Breach) and Part 160, Subparts C-E (Enforcement), as amended.

Additional HIPAA rules regarding electronic transactions and code sets (45 CFR Part 162) are not addressed in this Section and are not included in the term HIPAA Rules.

DoD HIPAA Issuances means the DoD issuances implementing the HIPAA Rules in the DoD Military Health System (MHS). These issuances are DoDM 6025.18, "Implementation of the Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule in DoD Health Care Programs," March 13, 2019, DoDI 6025.18, Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule Compliance in DoD Health Care Programs, March 13, 2019, and DoDI 8580.02, Security of Individually Identifiable Health Information in DoD Health Care Programs, August. 12, 2015.

Defense Health Agency (DHA) Privacy Office is the DHA Privacy and Civil Liberties Office. The DHA Privacy Office Chief is the HIPAA Privacy and Security Officer for DHA.

2. Records Management

When creating and maintaining official government records, the contractor shall comply with all federal requirements established by 44 United States Code (U.S.C.) Chapters 21, 29, 31, 33 and 35, and by 36 CFR, Chapter XII, Subchapter B - Records Management. The contractor shall also comply with DoD Administrative Instruction No. 15 (DoD AI-15), "OSD Records and Information Management Program" (May 3, 2013) and Records Management requirements outlined in the current TRICARE Operations Manual (TOM).

3. Freedom of Information Act (FOIA)

The contractor shall comply with the following procedures if it receives a FOIA request and immediately contact the DHA FOIA Officer for evaluation/action:

The contractor shall inform beneficiaries that DHA FOIA procedures require a written request preferably sent via the National FOIA Portal at: www.FOIA.gov. However, requesters may also submit requests via email at DHA.FOIA@mail.mil; or via postal delivery addressed to the DHA Freedom of Information Service Center, 7700 Arlington Boulevard, Suite 5101, Falls Church, Virginia 22042-5101. All FOIA requests shall describe the desired record as completely as possible to facilitate its retrieval from files and to reduce search fees which may be borne by the requestor. Contract and/or Modification numbers must be included in all FOIA requests seeking DHA procurement records. Although the administrative time limit to grant or deny a request (ten working days after receipt) does not begin until the request is received by DHA, the contractor shall act as quickly as possible and respond to DHA within ten working days.

In response to requests received by the contractor for the release of information, unclassified information, documents and forms which were previously provided to the public as part of routine services shall continue to be made available in accordance with previously established criteria. All other requests from the public for release of DHA records and, specifically, all requests that reference FOIA shall be immediately forwarded to DHA, ATTENTION: Freedom of Information Officer, for appropriate action. Direct contact, including interim replies, between TRICARE contractors and such requestors is not authorized. The contractor shall process requests by individuals for access to records about themselves in accordance with directions from the DHA Freedom of Information Service Center. If such a requestor specifically makes the request under the Privacy Act or does not make clear whether the request is made under FOIA or the Privacy Act, the contractor shall process the request in accordance with directions from the DHA Privacy Office. If requestor specifically seeks PHI under HIPAA, the contractor shall follow paragraph 8.1.6, relating to individual rights of access to PHI.

4. Systems of Records

In order to meet the requirements of the Privacy Act and the DoD Privacy Act Issuances, the contractor shall identify to the DHA Contracting Officer (CO) systems of records that are or will be maintained or operated for DHA where records of PII collected from individuals are maintained and specifically retrieved using a personal identifier. Upon identification of such systems to the CO, and prior to the lawful operation of such systems, the contractor shall coordinate with the [DHA Privacy Office](#) to complete systems of records notices (SORNs) for submission and publication in the *Federal Register* as coordinated by the Defense Privacy, Civil Liberties, and Transparency Division, and as required by the DoD Privacy Act Issuances.

Following proper SORN publication and government confirmation of contractor authority to operate the applicable system(s), the contractor shall also comply with the additional systems of records and SORN guidance, in coordination with the DHA Privacy Office, regarding periodic system review, amendments, alterations, or deletions set forth by the DoD Privacy Act Issuances, Office of Management and Budget (OMB) Memorandum 99-05, Attachment B, OMB Circular A-130, and Privacy Act of 1974 requirements applicable to contractors operating systems of records on behalf of federal agencies. The contractor shall promptly advise the DHA Privacy Office of changes in systems of records or their use that may require a change in the SORN.

5. Privacy Impact Assessment (PIA)

If DHA data is stored on a contractor owned system, a PIA is required from the contractor.

6. Data Sharing Agreement (DSA)

6.1 (Applies if contract requirements involve the use of DHA data (including PII/PHI, a limited data set, or de-identified data))

The contractor shall consult with the DHA Privacy Office to determine if the contractor must obtain a DSA or Data Use Agreement (DUA), when DHA data will be accessed, used, disclosed or stored, to perform the requirements of this Contract.

The contractor shall comply with the permitted uses established in a DSA/DUA to prevent the unauthorized use and/or disclosure of any PII/PHI, in accordance with the HIPAA Rules and DoD HIPAA Issuances. Likewise, the contractor shall comply with the DoD Privacy Act Issuances.

Prior to using any data involving PHI for research purposes, as defined by HIPAA, the contractor must gain approval from the DHA Privacy Board. Thus, the contractor shall comply with DHA Privacy Board requests for additional documentation.

To begin the DSA request process, the contractor shall submit a DSA Application (DSAA) to the DHA Privacy Office. Upon approval, the requestor shall enter into one of the following agreements, depending on the data involved:

DSA for De-Identified Data

DSA for PHI

DSA for PII Without PHI

DUA for Limited Data Set

DSAs executed for contract support will expire after 1 year or at the end of the contract option year, whichever comes first. If the contractual use of DHA data will continue after the DSA expiration date, the contractor shall submit a DSA Renewal Request template to the Privacy Office; however, if the DSA will not be renewed, the contractor shall close the DSA by providing a Certificate of Data Disposition (CDD) to the DHA Privacy Office.

6.2 (Applies if contract requirements may include human subject research)

This contract incorporates by reference the Protection of Human Subject Research clause in the Defense Federal Acquisition Regulation Supplement (DFARS) at 48 CFR 252.235-7004. A separate DFARS provision, 48 CFR 235.072(e), requires that the clause be incorporated in contracts that include or may include research involving human subjects in accordance with 32 CFR 219, DoDI 3216.02, and 10 U.S.C. 980, including research that meets exemption criteria under 32 CFR 219.101(b), the clause applies to solicitations and contracts awarded by any DoD component, regardless of mission or funding Program Element Code. Thus, in the event a

contractor participates in a study or demonstration project or other activity that involves human subject research, then the contractor shall comply with Protection of Human Subject Research clause. COs may not determine whether an activity is exempt from human subject research requirements. If contractor activity appears to involve human subject research, then the contractor shall consult the DHA Privacy Office, which may contact the Research Regulatory Oversight Office in the Office of the Under Secretary of Defense for Personnel and Readiness (OUSD(P&R)).

7. Privacy Act and HIPAA Training

The contractor shall ensure that its entire staff, including subcontractors and consultants that perform work on this contract receive training on the Privacy Act, HIPAA, and the federal regulations on confidentiality of substance use disorder patient records, 42 CFR Part 2. Refer to FAR 52.224-3 regarding specific requirements for Privacy Training appropriate to the contractor's scope of involvement with DHA's PHI and its regulatory responsibilities as either a Covered Entity, or Business Associate.

The contractor shall ensure all employees and subcontractors supply a certificate of all training completion to the Contracting Officer's Representative (COR) within 30 days of being assigned and on an annual basis based on the trainee's birth month thereafter.

8. HIPAA Business Associate Provisions

8.1 Business Associate - General Provisions

The contractor meets the definition of Business Associate, and DHA meets the definition of a covered entity under the HIPAA Rules and the DoD HIPAA Issuances. Therefore, a Business Associate Agreement (BAA) between the contractor and DHA is required to comply with the HIPAA Rules and the DoD HIPAA Issuances. The contractor shall use the DoD BAA, which shall be used by all organizational entities within the DoD, referred to collectively as the "DoD Components", located at, <https://www.health.mil/Military-Health-Topics/Privacy-and-Civil-Liberties/Privacy-Contract-Language/HIPAA-Compliant-Business-Associate-Agreement-for-the-MHS>. b.i. and (3)b.ii.

9. Breach Response

[This paragraph 9 is inoperative, and all references herein to "paragraph 9" shall be deemed to refer to the TOM breach responses provisions, if the contract incorporates the TOM by reference.

9.1 Definitions Related to Breach response

9.1.2 Breach means a loss of control, compromise, unauthorized disclosure, unauthorized acquisition, or any similar occurrence where: (1) a person other than an authorized user accesses or potentially accesses PII; or (2) an authorized user accesses or potentially accesses PII for an other than authorized purpose. The foregoing definition is based on the definition of breach in

DoDM 6025.18. Breaches are classified as either possible or confirmed (see the following two definitions) and as either cyber or non-cyber (i.e., involving either electronic PII/PHI or paper/oral PII/PHI).

9.1.3 A possible breach is an incident where the possibility of unauthorized access is suspected (or should be suspected) and has not been ruled out. For example, if a laptop containing PII/PHI is lost, and the contractor does not initially know whether or not the PII/PHI was encrypted, then the incident must initially be classified as a possible breach, because it is impossible to rule out the possibility of unauthorized access to the PII/PHI. In contrast, that possibility can be ruled out immediately, and a possible breach has not occurred, when misdirected postal mail is returned unopened in its original packaging. However, if the intended recipient informs the contractor that an expected package has not been received, then a possible breach exists until and unless the unopened package is returned to the contractor. In determining whether unauthorized access should be suspected, the contractor shall consider at least the following factors:

How the event was discovered.

Did the information stay within the covered entity's control.

Was the information actually accessed/viewed; and

Ability to ensure containment (e.g., recovered, destroyed, or deleted).

9.1.4 A confirmed breach is an incident in which it is known that unauthorized access could occur. For example, if a laptop containing PII/PHI is lost and the contractor knows that the PII/PHI is unencrypted, then the contractor should classify and report the incident as a confirmed breach, because unauthorized access could occur due to the lack of encryption (the contractor knows this even without knowing whether or not unauthorized access to the PII/PHI has actually occurred). If the laptop is subsequently recovered and forensic investigation reveals that files containing PII/PHI were never accessed, then the possibility of unauthorized access can be ruled out, and the contractor should re-classify the incident as a non-breach incident.

9.1.5 A HHS breach is an incident that satisfies the definition of breach in Section 164.402 of the HIPAA Breach Rule. The text of the HHS definition states:

Breach means the acquisition, access, use, or disclosure of PHI in a manner not permitted under subpart E of this part [i.e. the HIPAA Privacy Rule] which compromises the security or privacy of the PHI.

HHS breach excludes:

Any unintentional acquisition, access, or use of PHI by a workforce member or person acting under the authority of a DoD covered entity or a business associate, if such acquisition, access, or use was made in good faith and within the scope of authority and does not result in further use or disclosure in a manner not permitted under the HIPAA Privacy Rule.

Any inadvertent disclosure by a person who is authorized to access PHI at a DoD covered entity or business associate to another person authorized to access PHI at the same DoD covered entity or business associate, or organized health care arrangement in which the DoD covered entity participates, and the information received as a result of such disclosure is not further used or disclosed in a manner not permitted the HIPAA Privacy Rule.

A disclosure of PHI where a DoD covered entity or business associate has a good faith belief that an unauthorized person to whom the disclosure was made would not reasonably have been able to retain such information.

Except as provided in this definition, an acquisition, access, use, or disclosure of PHI in a manner not permitted under this issuance is presumed to be a breach unless the DoD covered entity or business associate, as applicable, demonstrates that there is a low probability that the PHI has been compromised based on a risk assessment of at least the following factors:

The nature and extent of the PHI involved, including the types of identifiers and the likelihood of re-identification;

The unauthorized person who used the PHI or to whom the disclosure was made;

Whether the PHI was actually acquired or viewed; and

The extent to which the risk to the PHI has been mitigated.

9.1.6 A **cybersecurity incident** is a violation or imminent threat of violation of computer security policies, acceptable use policies, or standard security practices, with respect to electronic PII/PHI. A cybersecurity incident may or may not involve a breach of PII/PHI. For example, a malware infection would be a possible breach if it could cause unauthorized access to PII/PHI. However, if the malware only affects data integrity or availability (not confidentiality), then a non-breach cybersecurity incident has occurred.

9.2 General

9.2.1 The breach response requirements shall be followed for all unauthorized use or disclosure of information regardless of whether the information is PHI or solely PII.

9.2.2 Because DoD defines "breach" to include possible (suspected), as well as actual (confirmed) breaches, the contractor shall implement these breach response requirements immediately upon the contractor's discovery of a possible breach. These procedures focus on the first two steps (breach identification and reporting) of a comprehensive breach response program, but also require addressing the remaining steps: containment, mitigation (which includes individual notification), eradication, recovery, and follow-up.

9.2.3 The contractor shall establish internal processes for carrying out the procedures set forth below. These processes shall assign responsibility for investigating, classifying, reporting and otherwise responding to breaches and cybersecurity incidents. The contractor should consult with

the DHA Privacy Office where guidance is needed, such as when the contractor is uncertain whether a discovered breach is the contractor's responsibility (e.g., if the contractor discovers a breach not caused by the contractor), or how the contractor is to classify an incident (breach vs. non-breach, confirmed vs. possible, cyber vs. non-cyber). Under no circumstances will a contractor delay reporting a confirmed or possible breach to the DHA Privacy Office beyond the 24-hour deadline. In conjunction with its initial investigation, the contractor shall immediately take steps to minimize any impact from the occurrence, proceed with further investigation of any relevant details (such as root causes, vulnerabilities exploited), and initiate further breach response steps.

9.2.4 In the event of a cybersecurity incident not involving a PII/PHI breach, the contractor shall follow applicable DoD cybersecurity and NIST requirements, which include United States-Computer Emergency Readiness Team (US-CERT) reporting (see paragraph 9.3). If at any point a contractor finds that a cybersecurity incident involves a PII/PHI breach (possible or confirmed), the contractor shall immediately initiate the reporting procedures set forth below. The contractor shall also continue to follow any required cybersecurity incident response procedures and other applicable DoD cybersecurity requirements.

9.2.5 Contractors shall require subcontractors who discover a possible breach or cybersecurity incident to initiate the incident response requirements herein by reporting the incident to the contractor immediately after discovery. The time of that report to the contractor shall trigger the contractor's DHA Privacy Office reporting deadline (24 hours) under paragraph 9.3.2. If a cybersecurity incident is involved, the contractor's deadline for US-CERT reporting (1 hour) runs from the time the incident is confirmed. The contractor shall require the subcontractor to cooperate as necessary to meet these deadlines, maintain records, and otherwise enable the contractor to complete the breach response requirements herein. Alternatively, the contractor and subcontractor may agree that the subcontractor shall report directly to US-CERT and the DHA Privacy Office, and that the subcontractor shall be responsible for completing the response process, provided that such agreement requires the subcontractor to inform the contractor of the incident and the subsequent response actions.

9.2.6 Contractors shall maintain records of all breach and cybersecurity incident investigations, regardless of the outcome. Investigations identifying unauthorized disclosures must be logged for HIPAA and Privacy Act disclosure accounting purposes, whether or not individual notification is required under the HIPAA Breach Rule.

9.2.7 Contractors, when acting as HIPAA-covered entities, and not as business associates, are not subject to the breach response requirements herein. However, such contractors are subject to both the HIPAA Breach Rule (applicable to them in their capacity as covered entities) and DoD cybersecurity requirements (applicable to them in their capacity as DoD contractors).

9.3 Reporting Provisions

9.3.1 Immediately upon discovery of a possible or confirmed breach or cybersecurity incident, the contractor shall initiate an investigation. If the incident involves electronic PII/PHI, and if the

investigation finds a confirmed breach or cybersecurity incident, the contractor shall report it, within 1 hour of confirmation, to the US-CERT Incident Reporting System at <https://forms.us-cert.gov/report/>, as required by the Department of Homeland Security (DHS).

Note: DHS no longer requires US-CERT reporting of non-cyber breaches or unconfirmed electronic breaches. However, DHS permits US-CERT reporting of unconfirmed cyber-related incidents on a voluntary basis. Thus, if a contractor is uncertain whether a possible cyber-related incident should be treated as confirmed and thus reportable, the contractor may voluntarily report the incident.

Before submission to US-CERT, the contractor shall save a copy of the on-line report. After submitting the report, the contractor shall record the US-CERT incident reporting number, which shall be included in the initial report to the DHA Privacy Office as described in paragraph 9.3.2.

Note: Regardless of whether or not an incident is confirmed as a breach, the contractor must also investigate whether or not the incident impacts data integrity or availability of PII/PHI. If such impact is confirmed, then the incident is reportable to US-CERT as a cybersecurity incident. For guidance on investigating the impact on data integrity and availability, refer to DoD cybersecurity and NIST guidance.

The contractor shall provide any updates to the initial US-CERT report by email to soc@us-cert.gov, with the Reporting Number in the subject line. The contractor shall provide a copy of the initial or updated US-CERT report to the DHA Privacy Office if requested. Contractor questions about US-CERT reporting shall be directed to the DHA Privacy Office, not the US-CERT office.

9.3.2 In addition to US-CERT reporting, the contractor shall report to the DHA Privacy Office by submitting the form specified below within 24 hours of discovery of a breach (possible or confirmed), unless the breach falls within a category that the Privacy Office has determined to be not reportable. This 24-hour period runs from the time of discovery, unlike the 1-hour US-CERT reporting period, which runs from the time a cybersecurity incident is confirmed. Thus, depending on the time period needed to confirm, the report to the DHA Privacy Office may be due either before or after the US-CERT report.

The breach report form required within the 24-hour deadline shall be sent by e-mail to: DHA.PrivacyOfficer@mail.mil. The contractor shall also e-mail the report to the CO, the COR and its usual point of contact at the applicable Program Office. Encryption is not required, because reports and notices shall not contain PII/PHI. If electronic mail is not available, telephone notification is also acceptable (at 703-275-6363), but all notifications and reports delivered telephonically must be confirmed in writing as soon as technically feasible.

Contractors shall prepare the breach reports required within the 24-hour deadline by completing the Breach Reporting Department of Defense Form DD 2959 (Breach of PII Report), available at <https://www.esd.whs.mil/Portals/54/Documents/DD/forms/dd/dd2959.pdf>. For non-cyber incidents without a US-CERT number, the contractor shall assign an internal tracking number and include

that number in Box 1.e of the DD Form 2959. The contractor shall coordinate with the DHA Privacy Office for subsequent action, such as beneficiary notification, and mitigation. The contractor must promptly update the DD Form 2959 as new information becomes available.

When a Breach Report Form initially submitted is incomplete or incorrect due to unavailable information, or when significant developments require an update, the contractor shall submit a revised form or forms promptly after the new information becomes available, stating the updated status and previous report date(s) and showing any revisions or additions in red text. The contractor shall provide updates to the same parties as required for the initial Breach Report Form.

9.4 Individual Notification Provisions

9.4.1 If the DHA Privacy Office determines that individual notification is required, the contractor shall provide written notification to beneficiaries affected by the breach as soon as possible, but no later than 10 working days after the breach is discovered and the identities and addresses of the beneficiaries are ascertained. The 10-day period begins when the contractor is able to determine the identities (including addresses) of the beneficiaries whose records were impacted. If notification cannot be accomplished within 10 working days, the contractor shall notify the DHA Privacy Office.

9.4.2 The contractor's proposed notification to be issued to the affected beneficiaries shall be submitted to the DHA Privacy Office for approval. The notification to beneficiaries shall include, at a minimum, the following:

Specific data elements,

Basic facts and circumstances,

Recommended precautions the beneficiary can take,

Federal Trade Commission (FTC) identity theft hotline information, and

Any mitigation support services offered, such as credit monitoring.

Contractors shall ensure any envelope containing written notifications to affected individuals are clearly labeled to alert the recipient to the importance of its contents, e.g., "Data Breach, Information Enclosed," and that the envelope is marked with the identity of the contractor and/or subcontractor organization that suffered the breach.

If media notice is required, the contractor will submit a proposed notice and suggested media outlets for the DHA Privacy Office review and approval (which will include coordination with the DHA Communications Division).

In the event the contractor is uncertain on how to apply the above requirements, the contractor shall consult with the CO, who will consult with the Privacy Office as appropriate when determinations on applying the above requirements are needed.

The contractor shall, at no cost to the government, bear any costs associated with a breach of PII /PHI that the contractor has caused or is otherwise responsible for addressing.

End of the Performance Work Statement

*** END OF NARRATIVE ***

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation 2026-00038)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-00038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region- Representation.	2023-06
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FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-7	Information Regarding Responsibility Matters. (Deviation 2026-O0038)	2026-02		

Information Regarding Responsibility Matters (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or

essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.215-7008 Only One Offer.

2022-12

ONLY ONE OFFER (DEC 2022)

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U. S. Contracting Officer that the proposed price is fair and reasonable ____ [U.S. Contracting

Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

52.212-1 ADDENDUM

This requirement will be procured using Acquisition of Commercial Products and Commercial Services and FAR Part 12 Simplified Acquisition Procedures. The government will make an award to the offeror's quote that conforms to the Request for Proposal (RFP) and proposed price is determined fair and reasonable.

Offeror shall submit signed and dated offer to Fort Hood Healthcare Contracting Office, Medical Readiness Contracting Office-West (MRCO-W), Army Health Contracting Activity, MEDCOM
Please return offer by 13 May 2026 @ 10:00 A.M.

The Contracting Officer, Joshua P. Barbero, joshua.p.barbero.civ@health.mil and Contract Specialist, Karan Quiles, karan.e.quiles.civ@health.mil are sole points of contact for this solicitation.

No telephonic questions or offers will be accepted. Only electronic (e-mail) offers will be accepted. Offeror shall clearly identify each part of their quote, as described below. Questions regarding this solicitation are to be submitted electronically to the Contract Specialist by **8 May 2026 @ 10:00 A. M. Central Standard Time and answers will be provided on or about 8 May 2026.**

If all documents are not submitted and are incomplete, they will not be further evaluated.

Each volume shall be submitted as a separate file in .pdf format, with the files names clearly identifying the volume number and contractor name (i.e., Volume I Administrative - XYZ Co). Pricing shall be submitted on the Excel spreadsheet attached to the solicitation (compensation plans), renamed with the same naming convention. Pricing information shall be included in Volume V - Pricing only and shall not be included or summarized in any other volume.

The proposal shall be prepared in five (5) separate volumes as follows.

- Volume I - Administrative
- Volume II - Past Performance
- Volume III - Technical Capability
- Volume IV - Compensation Plan
- Volume V - Pricing

Volume I - Administrative shall include the following:

1. A one (1) page summary or title page identifying the offeror, the full address, phone, UEI- (unique entity ID), CAGE code, point(s) of contact (POC(s)) of the offeror, and the solicitation number. (Page limit: 1 page.)
2. A completed copy of the SF 1449 with pricing on each of the CLIN Lines 0001,1001,2001,3001, and 4001, with the signature of a corporate officer authorized to negotiate for the company. Electronic signature is acceptable.
3. Signed copies of PAGE 1 ONLY of any amendments to the solicitation, if any are issued. (Page limit: 1 page per amendment, if any are issued.)
4. The Continuation of Essential Contractor Services Plan. This plan shall be prepared in accordance with DFARS 252.237-7024, Notice of Continuation of Essential Contractor Services, contained in this solicitation. There is no page limit for this plan; however, offerors are encouraged to be as succinct as possible in describing how it will continue to perform the essential contractor services listed in the Performance Work Statement during periods of crisis. The plan shall identify provisions made for the acquisition of essential personnel and resources, if necessary, for continuity of operations for up to 30 days or until normal operations can be resumed, and shall address, at a minimum, (i) Challenges associated with maintaining essential contractor services during an extended event, such as a pandemic that occurs in repeated waves; (ii) The time lapse associated with the initiation of the acquisition of essential personnel and resources and their actual availability on site; (iii) The components, processes, and requirements for the identification, training, and preparedness of personnel who are capable of relocating to alternate facilities or performing work from home; (iv) Any established alert and notification procedures for mobilizing identified "essential contractor service" personnel; and (v) The approach for communicating expectations to contractor employees regarding their roles and responsibilities during a crisis.

(End of Addendum to 52.212-1)

VOLUME II - PAST PERFORMANCE.

The offeror shall submit with its proposal evidence of relevant past performance under which the offeror provided the same or similar ground ambulance services with similar magnitude and scope in the public and/or private sector. Performance must have been by the Offeror (not by a subsidiary or sister company) either as the Prime Contractor or Sub-Contractor.

- Offerors shall complete and provide the Past Performance Information (PPI) Sheet (Attachment 2) on at least two (2) but no more than five (5) task orders or stand-alone

contracts/purchase orders the contractor will complete or has completed within the past three (3) years (from the date this solicitation closes) for a government or commercial client that they consider most relevant in demonstrating their ability to perform the proposed effort. Include rationale supporting the assertion of relevance. For a description of the characteristics or aspects the government will consider in determining recency and relevance, see the Evaluation Criteria for Factor 1: Past Performance.

- The PPI shall explain what aspects of the task order or contract are deemed relevant to the proposed effort and to what aspects of the proposed effort they relate. This may include a discussion of efforts accomplished by the offeror to resolve problems encountered on prior task orders or contracts as well as past efforts to identify and manage performance risk. The offeror is required to clearly demonstrate management actions employed in overcoming problems and the effects of those actions in terms of improvements achieved or problems rectified.
- The offeror will send blank PPI Qs to Government agencies and/or private sector companies requesting past performance information on applicable projects, in accordance with the PPI Form (Attachment 1). .
- It is the responsibility of the Offeror to track and ensure the completion/submission of the PPI s by the proposal due date. The Government will not accept incomplete or late PPI S.
- Note: The PPI sheets prepared shall reference the exact same projects addressed in the PPQs. Each PPI Sheet is limited to 3 pages per project.

The government reserves the right to use both the information provided in the offeror's past performance submittals and information obtained from other sources available to the government, to include, but not limited to, the Past Performance Information Retrieval System (PPIRS), Federal Awardee Performance and Integrity Information System (FAPIIS), or other databases; interviews with Program Managers, Contracting Officers, and commercial sources and/or non-government sources, such as any commercial business or customers referenced by the offeror in any of the past performance information disclosed. Failure to submit at least two (2) PPIs and PPQs with the proposal may result in the proposal being removed from consideration.

VOLUME III - TECHNICAL CAPABILITIES

Volume III - Technical Capabilities is limited to 20 pages, 10- or 12-point font, with 0.75" or 1.0" margins (headers and footers may be at 0.5" margin). Smaller fonts may be used in headers, footers, graphs or charts, provided the information is legible. Cover page and Table of Contents do not count towards the maximum page limitation for Volume III.

The technical proposal, Volume III - Technical Capability, shall address the offeror's technical capabilities in sufficient written detail for the government to determine if the offeror understands and can adequately fulfill the governments requirement. Statements that the offeror understands, can or will comply with all specifications, or statements paraphrasing the specifications of parts thereof, or phrases such as "standard procedures will be used" or "well-known techniques will be used" will be considered unacceptable. The technical proposal shall provide a narrative and supporting data so that the evaluation factors listed below can be applied to the information contained within the technical proposal. The following information must be submitted in writing as part of the technical proposal.

The offeror shall provide a current copy of their state of Kansas EMS license as part of their proposal in order to be considered.

Recruitment and Retention Plan:

Describe your recruitment and retention plan, the methods you will use to recruit qualified and competent personnel to ensure services commence on the date set forth in the solicitation and throughout the life of the contract. Discuss trends and strategies necessary to provide the services required. Describe your processes for initial verification of licensure, certification, education, life support training and completion of the health requirements and your processes for ensuring they are kept current. Describe the procedures to be used by management to maintain contact with employees to ensure all services required are being performed satisfactorily, including descriptions of corporate methods to provide timely information to contractor employees on subjects such as employee benefits and programs and contract performance. Specifically discuss the relationship between contractor employee, the contractor representative, and the COR. Describe your employee performance evaluation processes. Describe your employee incentive program (if any). Describe your process for managing performance issues with your employees. Describe your in-service education program and methods you utilize to maintain the skills of your employees. Describe your procedures for and commitment to timely payment of employees.

Technical Experience:

Describe your experience in providing ground ambulance services to a medical treatment facility in support of the Federal Government or a local governmental agency, including program management and medical director services. Describe the number of years of experience your company has in providing ground ambulance services within government operated facilities. Describe your background in hiring emergency medical technicians, paramedics, emergency room physicians, and dispatch personnel to staff a ground ambulance service. Describe your experience in providing the ambulance services required under the PWS: advanced life support ambulance service, transportation of remains, administrative transfers, transports to and from aero-medical evacuation sites, patient transports, and field ambulance services as defined in Army Regulation

(AR) 40-3, Chapter 13 - Emergency Medical Services. Describe your experience in the administering ground ambulance services. Describe your company's overall management structure and the structure under which the ground ambulance services will be administered. Describe the policies and procedures that will be utilized to ensure contractor personnel are performing in accordance with the Performance Work Statement, including how government provided equipment and vehicles will be properly maintained and tracked. Describe how you ensure proper oversight of your employees, including technical oversight and quality assurance of the services provided.

VOLUME IV - COMPENSATION PLAN

Compensation Plan: Compensation plans shall be submitted for each specialty for the base period and each option period indicating the hourly rate. A sample compensation plan worksheet is included at Attachment I. An Excel worksheet is provided for submitting compensation plans; however, it is not mandatory to use the spreadsheet as long as the vendor format includes the same or more information as that contained in the spreadsheet.

In the event a subcontractor will be utilized to provide staffing, a separate Compensation Plan is NOT required from the subcontractor; rather, subcontractor data shall be rolled up into the prime contractor's compensation plan.

The proposed compensation plan will be considered in terms of its impact upon recruiting and retention and its consistency with a total plan for compensation that is sufficient to attract and retain quality Health Care Providers (HCPs). This factor will be rated as either "acceptable" or "unacceptable".

A compensation plan for each of the specialties will be required and will be rated individually as either "acceptable" or "unacceptable" and then an overall rating will be assigned for this factor. Any offer that receives a rating of less than "acceptable" on any of the specialties compensation plans will be ineligible for award and will be rated "unacceptable" for the overall rating for this factor. Any compensation plan that is incomplete, does not show the breakdown of fringe benefits (or explanation if hiring independent contractors), or is not submitted with amounts as hourly (not annual) rates will be rated "unacceptable."

If found unacceptable in any of the factors, the proposal will be removed from consideration, and no further evaluation will be conducted.

Acceptable Rating - Based on the Contracting Office's market research, the proposed compensation is sufficient to attract and retain quality HCPs.

Unacceptable Rating - Based on the Contracting Office's market research, the proposed compensation to the HCP is not sufficient to attract and retain quality HCPs.

VOLUME V - PRICING

The offeror shall submit proposed total pricing for all contract line-item numbers. The Pricing Worksheet shall be submitted in Microsoft Excel format with all formulas intact. Provide total pricing for the base period and each option period, as well as a grand total of the entire quote. Cost and Pricing Data is not required under competitive and commercial acquisitions; however, if only one proposal is received - Other than Certified Cost or Pricing data may be required.

The government will award a contract resulting from the solicitation to the responsible offeror whose proposal conforms to the solicitation and is the most advantageous to the government, price and other factors considered.

(End of Addendum to 52.212-1)

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*** END OF NARRATIVE ***

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers: SEE Addendum 52.212-2.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

ADDENDUM TO 52.212-2

Paragraph (a) is hereby replaced with the following: Award will be made to the offeror with an acceptable technical proposal and compensation plan, both must be acceptable in order to be considered. Using the Best-Value Tradeoff source selection process order of importance is as follows 1) Past Performance and 2) Price. Past Performance is slightly more important than price. However, price could become the determining factor, if the quotes are determined to be essentially equal. The trade-off process could result in awarding to other than the low offeror. The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation represents the best value to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

(1) FACTOR 1 - PAST PERFORMANCE

(2) FACTOR 2 - TECHNICAL CAPABILITIES

(2) FACTOR 3 - COMPENSATION PLAN

(3) FACTOR 4 - PRICE

Past Performance, Technical Capabilities, and Compensation Plan are all of equal importance when being evaluated. Ultimately, the contract will be awarded to the Offeror whose proposal, based upon the evaluation criteria, represents the best value to the Government.

The Contracting Officer will review all proposals received to determine if they are responsive to the requirement. A responsive proposal is one that meets all of the terms, conditions and specifications in the solicitation. The Offeror must provide all documents listed and comply with all proposal instructions, including page limitations, in order for their proposal to be considered "responsive" to the solicitation. Only responsive proposals will be evaluated for award.

The Contracting Officer will conduct an integrated assessment on all responsive proposals. Current and relevant information should be provided to assist the Government with the evaluation process. Each initial proposal should contain the Offeror's best terms for compensation, past performance, and price.

Award may be made without discussions with Offerors (except communications conducted for the purpose of minor clarification). Therefore, each initial offer should contain the Offeror's best terms from a compensation, past performance and price standpoint. However, the Government reserves the right to conduct discussions if it is later determined by the Contracting Officer to be necessary. When discussions/negotiations occur, each participating Offeror shall be given an opportunity to revise their proposal to reflect any changes that may have resulted from the discussions /negotiations. The Contracting Officer will award the contract to the Offeror offering the best value to the Government, based on either the initial or a revised proposal.

EVALUATION CRITERIA

The Government evaluation process is as follows:

Step 1 - The Government will conduct a compliance review to determine if each Offeror met the submission requirements as outlined in 52.212-1 and Addendum to 52.212-1. If a proposal is found to be non-responsive no further consideration will be afforded to that proposal.

Step 2 - Once the Government has determined which proposals are responsive, only those proposals will continue with the evaluation process as outline below.

FACTOR 1 - PAST PERFORMANCE:

Provide at least 2 (no more than 5) PPIs (Attachment 2) to verify YOUR Company provided recent and relevant services either as the Prime Contractor or Sub-Contractor. "Relevant" is defined as "for the same or similar services" based on the type of services, the number of ambulance stations, and the number of personnel provided on a full time basis. "Recent" is defined as "within the past three years" from the date of solicitation closing. Past Performance must be with the Department of the Army, other US Government departments or agencies, state and local governments and/or private sector clients. You may also submit Past Performance for work performed by YOUR Company as a subcontractor. Work performed solely by a subsidiary company or sister company will not be considered. Past Performance references may be contacted. Narratives are required on PPIs for ratings other than satisfactory. If the narratives do not support the rating or if there is no narrative for a rating higher than satisfactory, the questionnaire rating will be evaluated as satisfactory. Offerors are reminded the government may elect to consider any additional past performance information that is available and obtained from other sources, including but not limited to the Past Performance Information Retrieval System (PPIRS).

In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available, the offeror will not be evaluated either favorably or unfavorably on past performance and will be assessed a Neutral Confidence rating.

The Past Performance evaluation results in an integrated assessment of the Offeror's probability of meeting the requirements and the assignment of an overall rating based on consideration of the Offeror's recent, relevant and quality past performance based on the Offeror's submittals (PPI Sheets) and other information.

Relevancy Ratings: The Government will use the following relevancy definitions/ratings when assessing relevant past performance:

Relevancy Rating

Adjectival	Description
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Rating	
Very Relevant	Present/past performance effort involved the same or higher scope and magnitude of effort and complexities this solicitation requires. (i.e., the performance involved managing and staffing one ambulance station, including a Medical Director and providing the same or larger team, providing the same services, in the same environment as the solicited requirement.)
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires. (i.e., the performance involved managing and staffing one (1) ambulance station, including a Medical Director and providing a slightly smaller team, providing similar services in a similar environment as the solicited requirement.)
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires. (i.e., the performance involved managing and staffing one (1) ambulance station, including a Medical Director and providing a small team, providing similar services in a similar environment as the solicited requirement.)
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires. (i.e., services did not encompass full service, or where the scope, magnitude and complexities are dissimilar to the solicited requirement.

Definitions

The following definitions will be utilized for the PCA determination:

(a) Recency Assessment

An assessment of the past performance information contained in the Offeror's submittals will be made to determine if it is recent. To be recent, the effort must be ongoing or must have been performed within the past three (3) years from the date of issuance of this solicitation. Past performance information that fails this condition will not be evaluated.

(b) Relevancy Assessment

An assessment of the recent past performance information will be made to determine its relevancy. This information will be evaluated to determine how closely the services performed under those contracts relate to the requirements of this requirement and assigned a rating.

Confidence Ratings: The Government will use the following definitions/ratings when making an overall Performance Confidence Assessment (PCA).

Performance Confidence Assessments Rating Methods

Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will successfully perform the required effort.

Evaluation Process

This factor is assessed with an overall PCA rating which is based on an integrated assessment of the Offerors recent, relevant and quality past performance.

The resulting PCA rating is determined at the factor level and represents an overall evaluation of contractor performance. Offerors without a record of recent, relevant and quality past performance or for whom information on past performance is so sparse that no meaningful confidence assessment rating can be reasonably assigned will not be evaluated favorably or unfavorably on past performance and, as a result, will receive an "Neutral Confidence" rating for the Past Performance factor. A PCA rating of Neutral Confidence or better must be obtained in order to be considered for award.

The following evaluation factors will be used to evaluate each offer. The relative importance of each factor is as follows: **Past Performance and Price are listed in order of the importance:**

Factor 1-Past Performance being the most important

Factor 2-Technical

Factor 3-Compensation

Factor 4-Price; however, if the proposals are determined to be essentially equal, Price could be the determining factor.

Award will be made to the Offeror who gives the Government the greatest value that it will best meet or exceed the requirements in a way that will be advantageous to the Government and whose total capabilities and compensation plan has been determined to be "Acceptable".

This may result in an award to a higher-rated, higher-priced offer where the decision is consistent with the evaluation factors and the Contracting Officer reasonably determines that the past and present performance of the higher priced Offeror outweighs the price difference.

The selection process is subjective by nature and professional judgment is implicit throughout the tradeoff process. The purchase order will be awarded to the Offeror whose proposal, based upon the evaluation criteria, represents the best value to the Government.

FACTOR 2 - TECHNICAL CAPABILITIES

Factor 2. Technical Capability:

Ratings of an offeror's proposal reflect the government's confidence in each offeror's ability, as demonstrated in its proposal, to perform the requirements stated in the solicitation.

Recruitment and Retention: The elements of the Recruitment and Retention factor will be evaluated to ensure that the proposed recruitment and retention plan is sufficient to attract and retain qualified healthcare providers based on market research.

Technical Experience: The elements of the Technical Experience factor will be evaluated to ensure the contractor has sufficient knowledge and experience to perform the contract in accordance with the Performance Work Statement.

The following adjectival rating scheme for the Recruitment and Retention factor and the Technical Experience factor will be used: Outstanding, Good, Acceptable, Marginal, and Unacceptable. The rating scheme is defined below:

Color Rating	Adjectival Rating	Description
Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Red	Unacceptable	Proposal does not meet requirements of the solicitation, and thus contains one or more deficiencies, and/or risk of unsuccessful performance is unacceptable. Proposal is unawardable.

If a proposal is found red or unacceptable in any of the factors, the proposal will be removed from consideration, and no further evaluation will be conducted.

FACTOR 3 - COMPENSATION PLAN

Compensation plans shall be submitted for the specialties reflected in this solicitation. Each plan shall reflect compensation for the base period and each option period. A sample compensation plan worksheet is included at Attachment 1.

In the event a subcontractor will be utilized to provide staffing, a separate Compensation Plan will NOT be required from the subcontractor. Rather, subcontractor data shall be rolled up into the prime contractor's Compensation Plan.

The proposed compensation plans will be considered in terms of their impact upon recruiting and retention and its consistency with a total plan for compensation that is sufficient to attract and retain quality Health Care Providers (HCPs). This factor will be rated as either "acceptable" or "unacceptable".

Compensation plans shall be submitted for the specialties reflected in this solicitation. Each plan shall reflect compensation for the base period and each option period. A sample compensation plan worksheet is included at Attachment 1.

In the event a subcontractor will be utilized to provide staffing, a separate Compensation Plan will NOT be required from the subcontractor. Rather, subcontractor data shall be rolled up into the prime contractor's Compensation Plan.

The proposed compensation plans will be considered in terms of their impact upon recruiting and retention and its consistency with a total plan for compensation that is sufficient to attract and retain quality Health Care Providers (HCPs). This factor will be rated as either "acceptable" or "unacceptable".

A Compensation Plan for each of the specialties will be required and will be rated individually as either "acceptable" or "unacceptable" and then an overall rating will be assigned for this factor. Any offer that receives a rating of less than "acceptable" on any of the specialties compensation plans will be ineligible for award and will be rated "unacceptable" for the overall rating for this factor. Any compensation plans that are incomplete, do not show the breakdown of fringe benefits (or explanation if hiring independent contractors), or are not submitted with amounts as hourly (not annual) rates will be rated "unacceptable."

In order to adequately manage the risk of non-performance and high turnover, the Government will evaluate the Compensation Plan (base salary direct pay rate plus fringe) rates for the base year and option years to ensure the Compensation Plan is sufficient to recruit and retain qualified candidates to support this requirement. The Government will utilize a variety of sources to evaluate each Offeror's Compensation Plan to determine an Acceptable or Unacceptable rating.

Any compensation plan that is incomplete, does not show the breakdown of fringe benefits, explanation if hiring independent contractors/subcontractors, or are not submitted with amounts as hourly (not annual) rates will be rated "unacceptable".

If found unacceptable in any of the factors, the proposal will be removed from consideration and no further evaluation will be conducted.

Acceptable Rating - Based on Medical Readiness Contract Office-West market research, the proposed compensation is sufficient to attract and retain quality HCPs.

Unacceptable Rating - Based on Medical Readiness Contract Office-West market research, the proposed compensation to the HCP is not sufficient to attract and retain quality HCPs.

FACTOR 4 - PRICE:

Price Analysis will be conducted. Proposals will be evaluated for price reasonableness. The proposed price will be evaluated on the bottom-line price for the entire effort, inclusive of all options. The price is reasonable if, in its nature and amount, it does not exceed that which would be incurred by a prudent person in the conduct of competitive business. The government may use various price analysis techniques and procedures to ensure a fair and reasonable price. Some of those techniques are, but not limited to, comparison of proposed prices received in response to the solicitation and/or comparison of proposed prices with the Independent Government Estimate. Price must be determined fair and reasonable.

Options. The Government will evaluate proposals for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that a proposal is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

Given that FAR 52.217-8 provides that the government may exercise the Option to Extend Services at the rates specified in the contract (i.e., the rates in effect when the Extension of Services option is exercised), for purposes of evaluating the Option to Extend Services, the Contracting Officer will consider the prices submitted for the base year and each option year, since those are the binding prices should the Option to Extend be exercised.

The award decision will be based on the best value offered to the government and not solely on price and price related factors. In making the award decision, the Contracting Officer will consider the evaluated rating of all factors. Ratings of "not acceptable" will not be eligible for award.

END OF ADDENDUM TO 52.212-2

*** END OF NARRATIVE ***

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	2024-09		
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.217-5	Evaluation of Options. (Deviation 2026-O0038)	2026-02		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-2	Prohibition on Contracting With Inverted Domestic Corporations-Representation. (Deviation 2026-O0038)	2026-02		

Prohibition on Contracting with Inverted Domestic Corporations-Representation (Feb 2026)
(Deviation 2026-O0038)

(a) Definitions. As used in this clause-

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) Representation. The Offeror represents that-

(1) It [] is, [] is not an inverted domestic corporation; and

(2) It [] is, [] is not a subsidiary of an inverted domestic corporation.

(End of provision)

52.209-5 Certification Regarding
Responsibility Matters.
(Deviation 2026-O0038)

2026-02

Certification Regarding Responsibility Matters (Feb 2026) (Deviation 2026-O0038)

(a)

(1) The Offeror certifies, to the best of its knowledge and belief, that-

(i) The Offeror and/or any of its Principals-

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i) (B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(1) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(2) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has ☐ has not ☐, within a 3-year period preceding this offer, had one or more

contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e. g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

52.229-11

Tax on Certain Foreign
Procurements-Notice and
Representation.

2020-06

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes

regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<http://www.acquisition.gov/far/>

(End of provision)

52.252-5	Authorized Deviations in Provisions.	2020-11
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Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7998	Alternate A, Annual Representations and Certifications. (DEVIATION 2026-O0043)	2026-02	Alternate A Deviation	2026-02 2026-02

2026-
O0043

Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (g) applies.

☐ (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

[] (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

[] (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov> After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	Title	Date	Change
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.237-7024 Notice of Continuation of 2010-10
Essential Contractor Services.

NOTICE OF CONTINUATION OF ESSENTIAL CONTRACTOR SERVICES (OCT 2010)

(a) *Definitions.* "Essential contractor service" and "mission-essential functions" have the meanings given in the clause at 252.237-7023, Continuation of Essential Contractor Services, in this solicitation.

(b) The offeror shall provide with its offer a written plan describing how it will continue to perform the essential contractor services listed in attachment 3, Mission Essential Contractor Services, dated 18 November 2009, during periods of crisis. The offeror shall-

(1) Identify provisions made for the acquisition of essential personnel and resources, if necessary, for continuity of operations for up to 30 days or until normal operations can be resumed;

(2) Address in the plan, at a minimum-

(i) Challenges associated with maintaining essential contractor services during an extended event, such as a pandemic that occurs in repeated waves;

(ii) The time lapse associated with the initiation of the acquisition of essential personnel and resources and their actual availability on site;

(iii) The components, processes, and requirements for the identification, training, and preparedness of personnel who are capable of relocating to alternate facilities or performing work from home;

(iv) Any established alert and notification procedures for mobilizing identified "essential contractor service" personnel; and

(v) The approach for communicating expectations to contractor employees regarding their roles and responsibilities during a crisis.

(End of provision)